

The Ammonium Nitrate Rules, 2012

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Union of India - Act

The Ammonium Nitrate Rules, 2012

UNION OF INDIA

India

The Ammonium Nitrate Rules, 2012

Rule THE-AMMONIUM-NITRATE-RULES-2012 of 2012

Published on 11 July 2012

Commenced on 11 July 2012

[This is the version of this document from 11 July 2012.]

[Note: The original publication document is not available and this content could not be verified.]

The Ammonium Nitrate Rules, 2012

Published vide Notification No. G.S.R. 553(E), dated 11th July, 2012

Ministry of Commerce and Industry

(Department of Industrial Policy and Promotion)

G.S.R. 553(E): - Whereas the draft of Ammonium Nitrate Rules, 2011 was published, as required by sub-section (1) of section 18 of Explosive Act, 1884 (4 of 1884) vide notification of the Government of India in the Ministry of Commerce and Industry (Department of Industrial Policy and Promotion) number G.S.R. 694(E), dated the 16th day of September, 2011 in the Gazette of India, Part II, Section 3, Sub-Section (i) inviting objections and suggestions from all persons likely to be affected thereby, before the expiry of a period of forty five days from the date on which the copies of the Gazette containing the said notification were made available to the public;

And, whereas, copies of the said Gazette were made available to the public on 16th September, 2011;

And, whereas, objections and suggestions were received from the public on the said draft rules, have been duly considered by the Central Government;

Now, therefore, in exercise of powers conferred by sections 5 and 7 of the Explosives Act, 1884 (4 of 1884) the Central Government hereby makes following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Ammonium Nitrate Rules, 2012.

(2)

They shall come into force on the date of their publication in the Official Gazette.

Chapter I

Preliminary

2.

Definitions.

- In these rules, unless the context otherwise requires;-

(a)

"Act" means the Explosives Act, 1884 (4 of 1884);

(b)

"Ammonium Nitrate" means the compound having the chemical formula NH_4NO_3 and includes any mixture or compound having more than 45 percent Ammonium Nitrate by weight including emulsions, suspensions, melts or gels (with or without inorganic nitrates) but excluding emulsion or slurry explosives and nonexplosives emulsion matrix and fertilizers from which the Ammonium Nitrate cannot be extracted by any physical or chemical process;

(c)

"Chief Controller" means the Chief Controller of Explosives;

(d)

"Competent person" means a person who is adequately experienced and well conversant in safe manufacture, conversion, storage, transportation and handling of Ammonium Nitrate, as the case may be;

(e)

"Controller" includes the Joint Chief Controller of Explosives, the Deputy Chief Controller of Explosives, the Controller of Explosives and the Deputy Controller of Explosives;

(f)

"Converter" means a person or an agency which undertakes conversion of solid form of Ammonium Nitrate into melt form or melt form of Ammonium Nitrate into solid form, for other than own use;

(g)

"Conservator" includes any person or agency or firm acting under the authority of the officer or body of persons appointed to be conservator of a port under section 7 of the Indian Ports Act, 1908 (15 of 1908);

(h)

"District Authority" means,-

(i)

in towns having a Commissioner of Police, the Commissioner or a Deputy Commissioner of Police;

(ii)

in any other place, the District, Magistrate or Additional District Magistrate;

(i)

"Departmental Testing Station" means the testing station of the Petroleum and Explosives Safety Organisation;

(j)

"explosive" means the explosives as defined under clause (d) of section 4 of the Explosives Act, 1884 (4 of 1884);

(k)

"emulsion explosive" and "non-explosive emulsion matrix" shall have the same meaning as defined under the Explosives Rules, 2008;

(l)

"form" means a Form specified in the Schedules annexed to these rules.

(m)

"licence" means pre-requisite document to manufacture, convert, import, export, stevedoring and bagging, transport, possess, sale and use of the Ammonium Nitrate;

(n)

"licensing authority" means authority empowered to issue the licence specified in Schedule I;

(o)

"Occupier", in relation to premises means a person who has the control and is responsible for managing the affairs of the premises, and includes, in relation to Ammonium Nitrate, the person in possession of the Ammonium, Nitrate:

Provided that in relation to a-

(i)

proprietary firm, the proprietor; or

(ii)

partnership firm, the partner nominated in writing by all other partners; or

(iii)

company, the director nominated in writing by the Board of Directors; or

(iv)

Society or association, the office bearer nominated in writing by the governing body, shall be the occupier;

(p)

"protected works" includes buildings or structures in which persons dwell, college, school, hospital, theatre, cinema house, shop, office, market, place of storage of hazardous substances, etc. but does not include agricultural wells, and pump sets connected therewith;

(q)

"slurry explosive" and "Site mixed explosive" shall have the same meaning as defined under Explosives Rules, 2008;

(r)

"store house" means independent building meant to possess or store Ammonium Nitrate other than Ammonium Nitrate melt;

(s)

"stevedore" includes any person or agency or firm which undertakes loading and unloading of bulk Ammonium Nitrate from the ship, its transport to the transit store for its bagging;

(t)

"Safety and Security Management Plan" means the comprehensive plan for ensuring and managing safety and security in Ammonium Nitrate manufacturing factory, stevedoring, transport, storage and usage premises.

3.

Scope of applicability of Rules and exemptions.

(1)

These rules are applicable all over India for regulating the manufacturing, conversion, import, export, stevedoring, bagging, transport, and possession for sale or use of the Ammonium Nitrate.

(2)

Nothing in these rules shall apply to the possession, use, transport or import or export of Ammonium Nitrate by -

(a)

any of the, Armed Forces of the Union and Ordnance Factories or other establishments of such Forces for own use in accordance with the rules or regulations made by the Central Government;

(b)

the Indian Railways and its authorised carriers while acting as carrier;

(c)

the Port authority;

(d)

any person employed under the Central Government or State Government in exercise of any power under the Act or these rules.

(3)

Nothing in these rules shall apply to the possession and use of ammonium nitrate of quantity not exceeding five

kilograms by the established laboratories, educational institutions, medical institutions, hospitals and health clinics for scientific and educational purpose:

Provided the local police is informed of the quantity under possession for the aforesaid purpose.

Chapter II

General Provisions

4.

Control over manufacture, conversion, stevedoring and bagging, import, export, transport, possession for sale or use of Ammonium Nitrate.

- No person shall undertake manufacture, conversion, stevedoring, import, export, transport or possess for sale or use Ammonium Nitrate except as authorised or licensed under these rules.

5.

Pre-requisite for grant of licence.

- No licence shall be granted unless all the relevant provisions laid down under these rules and all conditions contained in the license forms under Part-2 of Schedule II annexed to these rules are complied with:

Provided that all the existing manufacturers, converters, users, transporters, stevedores, sellers, possessors, importers and exporters shall apply for licence within six months and shall comply with the provisions of these rules within a period of one year from the date of publication of these rules.

6.

General Restrictions.

(1)

Restriction on manufacture - The Ammonium Nitrate shall not be manufactured at any place other than the place indicated in the licence.

(2)

Restriction on storage and conversion; - (a) The Ammonium Nitrate storehouse shall not be located in populated areas.

(b)

No Ammonium Nitrate shall be converted at any place except at converter's premises duly licensed.

(c)

No person shall extract Ammonium Nitrate from any fertilizer including by any chemical or physical process.

(3)

Restriction on stevedoring, bagging and possession for sale or use - (a) No person shall undertake stevedoring, bagging and possession for sale or use Ammonium Nitrate except under conditions of a licence granted under these rules at a licensed store house as specified therein;

(b)

No person shall store, process, deliver, receive, handle or transport any Ammonium Nitrate contaminated fully or partially with any organic material, metal powder or scraps, or sulphur, phosphorous etc.

(4)

Restriction on import or export - (a) No person shall import or export any Ammonium Nitrate except under and in accordance with the conditions of licence granted under these rules;

(b)

No Ammonium Nitrate shall be imported or exported except at its ports notified by the Central Government.

(c)

The Ammonium Nitrate shall not be imported into India by Sea except through the ports which are duly approved for this purpose by the Ministry of Shipping and Transport, Government of India, in consultation with the Chief Controller and declared as Customs Ports by the Commissioner of Customs.

(d)

The Ammonium Nitrate imported into India by sea shall not be stored in the port.

(5)

Restriction on transport - (a) The Ammonium Nitrate shall not be transported with any other explosives, inflammable substances, oil, gases, carbonaceous matter, etc.

(b)

No Ammonium Nitrate shall be transported in any carriage vessel plying for or carrying passengers on hire.

(6)

Restriction on delivery or dispatch - (a) No person shall deliver or dispatch any Ammonium Nitrate to anyone other than a person who-

(i)

is the holder of a licence to possess the Ammonium Nitrate or the agent of a holder of such a licence duly authorised by him in writing on his behalf; or

(ii)

is entitled under these rules to possess the Ammonium Nitrate without a licence.

(b)

The Ammonium Nitrate so delivered or dispatched shall in no case exceed the quantity at any point of time for which the person is holding a licence under these rules.

(c)

No person shall receive Ammonium Nitrate from any person other than the holder of a licence granted under these rules.

(7)

Restriction on handling Ammonium Nitrate. - No person shall handle or cause to be handled any ammonium Nitrate between the hours of sunset and sunrise:

Provided that nothing in this rule shall apply to handling of Ammonium Nitrate during the dark hours if proper illumination is provided in the area and the place is guarded.

(8)

Restriction on employment of children, intoxicated persons and certain other persons. - No person shall employ, allow or engage a person

a) who is below the age of eighteen years; or

b) who is in a state of intoxication; or

c) who is mentally or physically challenged,

for manufacture, conversion, bagging, storage, sale, loading, unloading or transport of Ammonium Nitrate or to enter any premises permitted under these rules.

(9)

Restriction on toxic, corrosive, dangerous or flammable substances. - No toxic, corrosive or flammable or otherwise dangerous substances such as carbonaceous matter, reducing agents, petroleum, carbide of calcium, compressed gases or any other chemical which may react with Ammonium Nitrate in a manner that may result in an explosion shall be allowed in the premises meant for manufacture, conversion, bagging, storage, import, export, transport or handling of Ammonium Nitrate.

(10)

Restriction on use. - Ammonium Nitrate shall not be used for blasting either alone or in combination with other ingredients unless permitted under the Explosives Rules, 2008.

7.

Employment of competent person.

(1)

No Ammonium Nitrate shall be manufactured or converted except under supervision of a competent person.

Explanation. - The competent person referred to in sub-rule (1) shall be a person with degree or diploma in engineering or graduate in science having minimum five years' experience in chemical or explosives industry as an essential qualification and diploma in industrial safety as an optional qualification and shall be employed by the licensee to ensure compliance of safety norms for manufacture and conversion of the Ammonium Nitrate.

(2)

All operations associated with stevedoring, bagging, handling, transport and use of Ammonium Nitrate in any building or part thereof shall be carried out under the supervision of a person employed by the licence holder who is conversant with the process thereof and the hazards connected therewith and the provisions of these rules.

8.

Packing of Ammonium Nitrate.

- No person shall import, export, transport, possess or sell Ammonium Nitrate unless;

- (a)
it is duly packed in a suitable waterproof bag or container or is suitably bagged by stevedore or converter;
- (b)
the container or package is marked in accordance with the provisions of rule 8;
- (c)
the packages conform to the relevant standard of Bureau of Indian Standards or other standards accepted and approved by the Chief Controller; and
- (d)
the packages of Ammonium Nitrate for export or import conform to the requirements of the tests as specified under International Maritime Dangerous Goods Code (hereinafter referred to as the IMDG Code in these rules) or United Nations recommendations on the transport of Dangerous Goods.

9.

Marking on Ammonium Nitrate packages.

- (1)
Each bag or container containing Ammonium Nitrate shall be marked in conspicuous indelible characters, by means of stamping or painting with-
 - (a)
the words "Ammonium Nitrate";
 - (b)
purity in percentage;
 - (c)
the name, address and licence number of manufacturer or converter or importer;
 - (d)
identification number of the package or bar coding;
 - (e)
the net weight of Ammonium Nitrate;
 - (f)
gross weight of the package;
 - (g)
date of bagging and batch number;
 - (h)
name, address, licence number and unique identification number of stevedoring agent, if any.

(2)

The bags shall be serially numbered with date of bagging by means of stencilling, bar-coding, by RFID tags or any other means by the manufacturer or importer as directed by the Chief Controller.

10.

Recovery of Spillage during handling.

- If any spillage occurs during the process of handling of Ammonium Nitrate at any stage, it should be carefully collected and bagged and accounted for and the spillage, if not contaminated, may be transferred expeditiously only to a licensee after proper accounting.

11.

Special precautions against accident.

(1)

No person shall commit or attempt to commit any act which may tend to cause a fire or explosion in or about any place where the Ammonium Nitrate is manufactured, converted, bagged, stored or transported.

(2)

Every person possessing Ammonium Nitrate and every person in charge of or engaged in the import, export, manufacture, conversion, bagging, sale, transport or handling of the Ammonium Nitrate shall at all times comply with the provisions of these Rules and the conditions of the licence relating thereto and observe all due precautions for the prevention of thefts or accidents by fire or explosion.

(3)

The premises used for storage of the Ammonium Nitrate shall not be used for storage of any other materials including fertilizers.

(4)

Every person shall prevent any other person from committing any such act as is prohibited under sub-rule (1).

12.

Restriction on unauthorised persons, provision of guards and safety distance for storehouse.

(1)

The licence holder shall at his own expense provide security guards for safe custody of Ammonium Nitrate stored in a storehouse.

(2)

For the purposes of sub-rule (1), the security guards shall be of such strength as the District Authority may consider it to be sufficient.

(3)

The premises used for manufacture of the Ammonium Nitrate or conversion of the melt into solid form of Ammonium Nitrate or vice versa and the storehouse shall be surrounded by a wall of at least two metres height of such strength and construction as to effectively prevent entry of unauthorised persons.

(4)

(a)

The Ammonium Nitrate storehouse shall maintain;

(i)

for storage not exceeding 30 MT, Safety Distance of 4.5 metres from store house to the compound wall and 45 metres from any protected works;

(ii)

for storage exceeding 30 MT, Safety Distance of 9 metres from store house to the compound wall and 90 metres from any protected works;

(b)

the storehouse may be adjacent to the bagging unit of the manufacturing, conversion or explosives or nitrous oxide manufacturing plants, but shall observe the provisions of clauses (i) and (ii) of sub-rule (a) of rule 4.

Note: The safety distance shall be measured from the edge of the storehouse.

(5)

(a)

The storehouse shall be;

(i)

constructed at ground level without any mezzanine floor, upper floor or any basement;

(ii)

with the floor (plinth) level not less than forty five centimetres from the ground level and well ventilated;

(iii)

with at least 23 centimetres thick walls built of brick or stone mortar, or concrete and with roof of RCC or Asbestos or Fibre or GI sheet;

(iv)

with sufficient numbers of doors made of steel of minimum three millimetres thick and opening outwards;

(b)

Notwithstanding anything contained in sub-clause (iii) storehouse of stevedore may be a shed without side walls.

(6)

Any storehouse used for possession for sale or possession for use of Ammonium Nitrate shall have a floor area not less than one square metre per Metric Tonne of Ammonium Nitrate and the storehouse total holding capacity shall not exceed 5000 MT storage:

Provided that one stack of bagged Ammonium Nitrate shall not exceed 200 MT and a minimum clearance of two metres shall be maintained between the adjacent stacks and at least 0.6 metre wide gangway shall be maintained between the stacks and the walls of the storehouse.

Provided further that the maximum stack height shall not exceed 2.5 metres from the floor level and the same shall be

prominently marked on the walls of the storehouse.

(7)

The storehouse shall be protected against lightning as per IS 2309.

(8)

The storage tank meant for storage of Ammonium Nitrate melt shall be-

(i)

constructed of stainless steel or any other compatible material according to sound engineering practice conforming to a national or international code accepted by the Chief Controller and adequately insulated and supported so as to ensure safety and stability during loading and unloading of Ammonium Nitrate melt into or from such storage tank;

(ii)

with a secondary containment in the form of dyke enclosure made of cement concrete and its holding capacity shall not be less than the capacity of the largest tank situated within such enclosure;

(iii)

observing Safety Distance of 4.5 metres within the compound wall and plant facilities and 45 metres from any protected works;

(iv)

with single storage tank capacity not exceeding 200MT; and

(v)

provided with a suitable hard stand adjacent to it for loading and unloading and such a hard stand shall be located so that its centre maintains a minimum safety distance of 4.5 metres all around.

13.

Prohibition of certain acts.

- No person shall -

(i)

provide false or misleading information or declaration in any application made or statement submitted under these rules; or

(ii)

falsify, erase or fraudulently alter any entry in any log book, document or other record required to be kept or maintained under these rules; or

(iii)

change or alter any licence, or other documents issued under these rules.

14.

Maintenance of records and submission of returns.

(1)

Every person holding a licence granted under these rules for manufacture, conversion, stevedoring, possession, sale, use, transport, import or export of the Ammonium Nitrate shall maintain records in the forms specified in Part 3 of Schedule II to ensure accountability, identification and traceability of Ammonium Nitrate and shall produce such records on demand to an authority specified in rule 50.

(2)

Stock books in the forms specified in Part 3 of schedule II shall be page numbered and certified by any officer authorised under these rules and such records shall be retained for a period of three years, unless otherwise directed by an authority.

(3)

The licence holder shall submit monthly returns of the Ammonium Nitrate manufactured, converted, stevedored, received, sold, transported, used, destroyed or imported or exported to the licence issuing Authority, the District Magistrate and Superintendent of Police in the form specified in Part 3 of Schedule II so as to reach the above authority on or before the tenth day of every succeeding month.

(4)

The licence holder shall maintain record and make transaction and file returns by electronic means when directed by the licence issuing authority or the Central Government.

Chapter III

Provisions for Manufacture, Conversion, Possession, Sale and use of Ammonium Nitrate

15.

Safety and Security Management Plan.

(1)

A person intending to manufacture, convert, stevedore, bag, possess for sale or use, transport, import or export Ammonium Nitrate shall submit Safety and Security Management Plan to the licensing authority and to the District Authority with the security aspect duly vetted by the police authorities for approval.

(2)

The Plan as referred to in sub-rule (1) shall include the following safety and security aspects, namely:-

(a)

assigned responsibility and organisational structure;

(b)

hazard identification, risk assessment and control;

(c)

provision of information, education and training to the work force, contractors and visitors;

(d)

accident reporting and investigation;.

(e)

emergency response planning and preparedness such as first aid, testing of emergency plan once in a year;

(f)

Disaster Management Plan and provision of escape routes, identifying and assessing security risk associated with the activities; evacuation plan, appropriate fire fighting controls;

(g)

set of process adopted by the holder of the licence to carry out authorized activities and keeping of Ammonium Nitrate secure;

(h)

maintenance of schedules for plant and equipment;

(i)

standard operating procedure;

(j)

competence of personnel for tasks;

(k)

nature of the surveillance;

(l)

documentation and record keeping so as to ensure accountability, identification and traceability of Ammonium Nitrate; security arrangement for storehouse, tankers containing Ammonium Nitrate melt, transport of Ammonium Nitrate by vehicles, security during transport of Ammonium Nitrate including its loading or unloading; mechanism for controlling and restricting access of unauthorized person to Ammonium Nitrate storage; assigning of responsibility for ensuring compliance with plan or task.

(3)

Every person engaged in the manufacturing factory shall be imparted training in safety and security aspects by competent persons periodically during manufacture, handling, transportation and storage of the Ammonium Nitrate and records of such trainings shall be maintained in the factory.

Chapter IV

Provisions for Import and Export of Ammonium Nitrate

General

16.

Import or export by land.

- No licence for import or export of Ammonium Nitrate by land shall be granted without the previous sanction of the Central Government in each case, wherein the Central Government may impose conditions and restrictions in consultation with the Chief Controller

17.

Compliance of Port Rules.

- The provision of rules regulating handling of Ammonium Nitrate at the notified ports issued under the Act and respective Port rules and bye-laws shall be observed.

18.

Import of Ammonium Nitrate.

(1)

Ammonium Nitrate shall preferably be imported in the bagged form and whenever Ammonium Nitrate is imported in bulk, it shall be bagged or packed suitably by stevedoring agency duly authorized in writing by importer and having valid licence under these rules.

(2)

The stevedoring agent shall maintain records of Ammonium Nitrate received and dispatched to each importer to ensure accountability, identification and traceability and file returns.

(3)

The imported Ammonium Nitrate shall be immediately removed from the port to the stevedores licensed storehouse. Ammonium Nitrate shall be dispatched from the stevedore's storehouse only in bagged form and each bag of Ammonium Nitrate shall be marked by stevedoring agent in accordance with rule 9.

(4)

Declaration by importer - A person holding an import licence granted under these rules shall furnish a declaration to the licensing Authority and the Chief Controller;

(a)

in Form R-3 under Part of Schedule II as soon as ship carrying Ammonium Nitrate sails from the port of loading;

(b)

in Form R-4 under Part 3 of Schedule II as soon as any shipment of Ammonium Nitrate is cleared at the port of import.

(5)

Declaration by master of ship or by the ship's agent-

(a)

the master or every ship carrying Ammonium Nitrate or the agent for such ship shall give the Conservator of the port not less than forty eight hours' notice of its intended arrival at the port;

(b)

the master of every ship carrying Ammonium Nitrate shall deliver to the pilot before entering any port, a written declaration in Form CE-1, under Part 4 of Schedule II, provided that if in anticipation of a ship's arrival, the agent for such ship delivers to the Conservator of the port a written declaration, as aforesaid under his signature, no such declaration need to be made by master of the ship;

(c)

Every declaration delivered to a pilot under clause (b) of sub-rule (5) shall be made over by him without delay to the Conservator of the port and all declarations received by the Conservator of the port shall be forwarded by him, with all convenient despatch to the Commissioner of Customs.

(6)

Restrictions on import by air - The Ammonium Nitrate shall not be imported by air.

19.

Export of Ammonium Nitrate.

(1)

Restrictions on export by air - The Ammonium Nitrate shall not be exported by air.

(2)

Declaration by exporter or his agent - The exporter or his authorised agent shall give notice to the conservator of the port before forty eight hours that he intends to bring the Ammonium Nitrate to port for export and shall not bring the Ammonium Nitrate to any part of the port without prior permission in writing from the said officer.

(3)

Export of Ammonium Nitrate shall only be in the bagged form and marked in accordance with the provisions of rule 9.

Chapter V

Provision for Transport of Ammonium Nitrate

General

20.

Procedure to be followed during transportation.

(1)

Every consignment of Ammonium Nitrate or Ammonium Nitrate melt transported shall be accompanied by a pass issued by the consignor in Form R-11 (b) of Part-3 of Schedule II.

(2)

The pass referred in sub-rule (1) shall be attached to the way-bill, invoice or bill of entry or despatch note as the case may be.

(3)

An intimation in Form R-11 (a) of Part-3 of Schedule II shall be sent by the consignor at least twenty four hours in advance to the District Superintendent of Police of place of dispatch as well as to the District Superintendent of Police of place of receipt.

(4)

A copy of every pass issued under sub-rule (1) shall forthwith be sent by the consignor to-

(a)

the Licensing Authority who issued the licence of the consignor;

(b)

the District Authority having jurisdiction of the place of dispatch;

(c)

the District Superintendent of Police in whose jurisdiction the place from which the consignment is sent is situated; and

(d)

the District Superintendent of Police in whose jurisdiction the place to which the consignment is sent is situated.

21.

General requirements and documents to be available during transport.

(1)

The Ammonium Nitrate or Ammonium Nitrate melt shall be transported only by consignors holding valid licence in Form P-4

(2)

The tanker for transportation of Ammonium Nitrate melt shall be-

(i)

constructed of stainless steel or any other compatible material, properly and adequately insulated according to sound engineering practice conforming to national or international code accepted by the Chief Controller and secured or mounted over a vehicle chassis ensuring total safety and stability during transportation;

(ii)

with gross carrying capacity of such Ammonium Nitrate melt tanker not exceeding the maximum load limit prescribed by the Road Transport Authority for such vehicle;

(iii)

with inlet and outlet valves of such construction and design so as to permit its secured locking and sealing; and

(iv)

with vent pipe(s) suitably covered to prevent pilferage of the product.

(3)

The Ammonium Nitrate shall not be transported along with any other material including hazardous material.

(4)

The Ammonium Nitrate shall be transported in motor vehicles or animal driven vehicles duly secured and the Ammonium Nitrate shall be properly and securely tied from all sides by providing layers of tarpaulin covering and transported under the seal of the transport licence holder and it shall be ensured that the driver or any attendant thereof has in his possession the following documents during transport, namely:-

(a)

copy of indent in Form R-10 under Part 3 of Schedule II, issued by the consignee;

(b)
copy of transport pass in Form R-11(b) under Part 3 of Schedule II issued by the consignor; and

(c)
the original copy of bill or bill of entry of Ammonium Nitrate being transported.

(5)
The documents mentioned in sub-rule (4) shall be produced by the transporter on demand by the authority empowered under rule 50.

(6)
The consignor shall ensure delivery of consignment of Ammonium Nitrate to storehouse of the consignee at the declared destination and the Form R-11(b) duly acknowledged by the Consignee be retained as record by the Consignor.

(7)
Despatch of Ammonium Nitrate to carriers for transport. - (a) No person shall despatch any Ammonium Nitrate to a carrier other than the Indian Railways or its authorised carriers for the purpose of transport.

(b)
No person shall despatch any Ammonium Nitrate to the Indian Railways or its authorised carriers for the purpose of transport unless he has given the Station Master a notice in writing -

(i)
of his intention to tender such Ammonium Nitrate;

(ii)
certifying that the Ammonium Nitrate has been packed and marked in accordance with rules 8 and 9;

(iii)
stating the quantity of Ammonium Nitrate to be transported;

(iv)
that he has received a reply and intimation in writing from the Station Master that he is prepared to receive the Ammonium Nitrate for immediate despatch;

(v)
that he has received a confirmation from the consignee regarding readiness to receive Ammonium Nitrate as authorised under these rules.

(c)
No person shall bring, send or forward to, or upon any railway any Ammonium Nitrate which the Indian Railways have by any notice of regulation for the time being in force notified that it shall not receive.

22.
Loading, unloading, maintenance and operation of vehicle engaged in transport of Ammonium Nitrate.

(1)
The vehicles engaged in transport of the Ammonium Nitrate, shall be attended by only such drivers or cleaners, whose antecedents are verified by the local police and a list of such drivers or cleaners along with all personal particulars should be made available to the local police in advance to carry out the verification and the re-verification of such drivers or cleaners should be carried out at regular intervals, once in five years.

(2)
The vehicles carrying Ammonium Nitrate shall be accompanied by at least two able bodied guards.

(3)
The vehicle carrying or containing Ammonium Nitrate shall not stop for a longer period than is reasonably required, and shall avoid stops at places where public safety is likely to be in danger:

Provided that where a vehicle transporting or containing Ammonium Nitrate is parked overnight due to any reasons beyond the control of the driver, the premises in which the vehicle is parked-

(a)
shall not be used for any purpose that might give rise to the presence therein of an open flame, matches or any substance or article likely to cause explosion or fire;

(b)
shall be away from any habitation or any godown containing articles of a flammable nature or other hazardous goods

and the nearest police station shall be informed about the location of such temporary parking.

(4)

A vehicle while transporting Ammonium Nitrate shall be adequately secured at the expense of the licence holder and if the consignment of Ammonium Nitrate is likely to pass through sensitive areas notified by the Ministry of Home Affairs, it should be escorted by armed police escort or guard, provided by the District Police Administration.

(5)

The Ammonium Nitrate melt shall be transported in the melt tanker with discharge faucets and manhole(s) duly sealed by the melt supplying firm and the melt supplying firm shall issue quality control certificate indicating clearly the concentration factor of the Ammonium Nitrate melt.

(6)

The consignee shall verify that the concentration factor of Ammonium Nitrate is as specified in the invoice and that the seals on melt tank are intact.

(7)

The transport of Ammonium Nitrate in sensitive areas notified by Ministry of Home Affairs shall not be allowed during the period from sunset to sunrise. The movement of Ammonium Nitrate and the particulars of the origin and destination of the consignment shall be informed to the concerned police authorities in writing.

(8)

Fire extinguishers to be provided. - (a) Every vehicle transporting Ammonium Nitrate shall be provided with two fire extinguishers of minimum five kilograms capacity and one of the extinguishers shall be capable of dealing with fire involving electric circuits and the other, with other inflammable components.

(b)

The fire extinguishers shall always be kept in good working condition.

(c)

The fire extinguishers shall be located where they shall be convenient and ready for immediate use.

(d)

The fire extinguishers shall be examined and recharged according to the manufacturers' recommendations.

23.

Procedure on accidents to vehicles.

(1)

Where a vehicle transporting Ammonium Nitrate is involved in an accident, fire or any other occurrence that causes a significant delay in the delivery of Ammonium Nitrate or damage to the vehicle or Ammonium Nitrate, the driver or any other authorised person accompanying the vehicle shall-

(a)

comply with all requirements of law relating to road accidents;

(b)

inform the nearest police station and

(c)

inform the licensee holding transport licence who shall-

inform the District Authority in whose jurisdiction the accident has taken place giving the full details of the Ammonium Nitrate carried and the accident;

(2)

In case of breakdown of a vehicle carrying Ammonium Nitrate, the driver or the person in charge of the vehicle shall inform the licensee, who shall in turn inform the District Authority and the nearest police station in whose jurisdiction the vehicle is broken down giving the full details of Ammonium Nitrate and the circumstances leading to the break down;

24.

Nothing contained in rules 20, 21, 22 and 23 shall be applicable for transport of solid Ammonium Nitrate, possessed/purchased by persons permitted/holding valid licence under these rules for quantities not exceeding 50 Kilograms.

Chapter VI

Provision for Possession, Sale or use of Ammonium Nitrate

25.

Possession in licensed premises.

(1)

A person holding licence for possession of Ammonium Nitrate granted under these rules shall store the Ammonium Nitrate only in the premises specified in the licence.

(2)

The premises in which Ammonium Nitrate is kept shall be used only for possession and sale or use of such Ammonium Nitrate and for no other purposes.

(3)

No person shall sell Ammonium Nitrate from any premises other than those licensed under these rules.

(4)

The Licensed storehouse shall be kept securely closed or locked except when Ammonium Nitrate is taken in or taken out.

(5)

The keys of the Licensed storehouse shall be kept in the licence holder's custody or with his authorised agent and shall be produced for opening the storehouse whenever so required by the inspecting officer.

(6)

The name, address and passport size photograph of the authorized agent with whom the keys will be kept shall be furnished to the licensing authority and the District authority having jurisdiction.

26.

Quantity of Ammonium Nitrate to be purchased in a given period of time.

- A licence holder for possession, sale or use of Ammonium Nitrate in and from a storehouse shall purchase only such quantity of Ammonium Nitrate in a given period as may be specified in the licence.

27.

Accountability and transaction of Ammonium Nitrate.

(1)

All licences granted under these rules shall bear the photograph of the licence holder or the occupier.

(2)

For purchase and transaction of Ammonium Nitrate, the following procedures shall be observed, namely -

(a)

the indent for supply of Ammonium Nitrate in Form R-10 under Part 3 of Schedule II signed by the licence holder or his authorised representative shall be made over to the supplier;

(b)

the photograph and specimen signature of the licence holder or occupier shall be filed with the supplier of Ammonium Nitrate;

(c)

the photograph, specimen signature and address of the licence holder's authorised representative duly attested by the licence holder or occupier shall be filed with the supplier of Ammonium Nitrate.

(3)

The licensee shall engage only such authorised representatives, whose antecedents have been verified by the local police and a list of such authorised representatives along with all personal particulars shall be made available to the local police in advance to carry out the verification. Re-verification of such representative shall be carried out at regular intervals, once in five years.

(4)

The consignor of Ammonium Nitrate shall verify the photograph and signature of the representative of the consignee before effecting the delivery;

(5)

The authorised representative mentioned in these rules above shall represent one licence holder only.

Chapter VII

Grant or Refusal of Approval, Licence, Amendment, Transfer And Renewal

28.

Authority issuing Licences.

- The licences for specific purposes may be granted by the authorities specified in Schedule I.

29.

Payment of Fees.

(1)

The following fee shall be payable for prior approval, issuance of licences and amendment, namely :-

(a)

Scrutiny fee for prior approval- ₹ 1000

(b)

Licence to manufacture and possess for sale Ammonium Nitrate or convert melt to solid and, vice versa and possess for sale from a storehouse- ₹ 20,000/year

(c)

Licence to Possess for sale of Ammonium Nitrate from a store house- ₹ 2000/year

(d)

Licence to Possess for use of Ammonium Nitrate from a store house- ₹ 1000/year

(e)

Licence to Import Ammonium Nitrate- ₹ 5000

(f)

Licence to Export Ammonium Nitrate- ₹ 5000

(g)

Licence to stevedore, bag and store Ammonium Nitrate- ₹ 20,000/year

(h)

Licence to Transport Ammonium Nitrate- ₹ 2000/year

(i)

Amendment of licence- ₹ 1000

(j)

Duplicate copy of any licence- ₹ 100

(2)

When licence issuing authority is the Chief Controller or Controller, the fees payable shall be paid by a crossed bank draft or electronic means and when issuing authority is District Authority, the fees payable shall be paid in such manner as may be specified by him.

(3)

When licence is sought for more than one financial year ending on the 31st March, fees for the desired number of financial years at the rate specified in sub-rule (1) above shall be payable.

30.

Prior approval before construction of facilities.

(1)

A person desiring to obtain a licence for manufacture, conversion and storehouse for possession for sale or possession for use, of Ammonium Nitrate, under these rules, shall obtain prior approval from the authority empowered to grant such licence, by submitting documents mentioned in rule 33.

(2)

The District Magistrate while granting prior approval shall return to the applicant one set of plans showing the distances required to be kept clear as specified in rule 12 duly endorsed together with approval.

(3)

The Chief Controller or Controller, while granting prior approval, shall return to the applicant one set of plans showing the distances required to be kept clear within and around as specified in rule 12 duly endorsed and an additional set of the said documents to enable the applicant to submit the same to the authority authorised to issue no objection certificate under rule 33.

Note: The prior approval under sub-rule (1) shall not be necessary for the facilities of Ammonium Nitrate existing as on the date of publication of these Rules, for obtaining license under these rules.

31.

Application for grant of licence.

- After the construction of premises, as per plan approved under rule 30, the applicant shall apply for grant of licence along with documents stated in rule 32 to the authority empowered to grant such licence.

32.

Period of validity of licence.

- The licensing authority may grant a licence for a period not exceeding five financial years or part thereof ending on the 31st March for all purposes, except for licence for import and export, which shall be one year.

33.

Documents to be submitted for seeking approval or licence.

(1)

The following documents shall be submitted for approval of premises proposed to be licensed, namely: -

(a)

Application in appropriate Form as per Part-1 of Schedule II.

(b)

Safety and Security Management Plan prepared as required under rule 15.

(c)

Three sets of the drawings of the proposed storehouse and attached facilities and the site showing approach road with all protected works in and around.

(d)

Documentary evidence in respect of company or partnership firm or society including list of directors or partners or office bearers, as the case may be, including nomination of the authorised signatory with their specimen signatures.

(e)

Six passport size photographs of the occupier signed by him in the front along with documentary evidence of nomination as occupier.

(f)

Scrutiny fee as specified in rule 29.

(2)

The following documents shall be submitted for grant of licence, namely:-

(a)

Application in appropriate Form as per Part-1 of Schedule II.

(b)

Six sets of the drawings approved under sub rule (1) above.

(c)

The particulars of persons employed for handling of Ammonium Nitrate, their qualification and experience. The applicant shall file an affidavit regarding their character and antecedents.

(d)

The certificate of completion of the storehouse and attached facilities duly endorsed by Chartered Engineer.

(e)

No Objection Certificate in original along with drawings duly endorsed from the concerned District Authority, where the District Authority is not the licence issuing authority.

(f)

Required licence fee as prescribed in rule 29.

34.

Procedure to be observed for issue of no objection certificate and grant of licence by the District Authority.

(1)

The applicant desiring to obtain a licence from the Chief Controller or Controller shall apply to the District Authority with set of drawings approved under sub-rule (3) of rule 30 for issue of a certificate to the effect that there is no objection to the applicant receiving licence for the site proposed.

(2)

(a)

On receipt of the application for issue of no objection certificate or grant of licence, the District Authority shall verify the antecedents of the applicant, lawful possession of the site, genuineness of the purpose, interest of the public any other

matter as deemed necessary and carry out any other verifications or enquiries as may be specifically required or deemed necessary by the licence issuing authority.

(b)

The Director General of Mines Safety shall be the authority to grant no objection certificate if the area of the proposed site comes under the Indian Mines Act, 1952.

(3)

Fresh No Objection Certificate is not required for manufacture or converters/storehouses, which already existing at the site covered under No Objection Certificate issued for the purpose by the District Authority or Director General of Mines Safety or No Objection Certificate issued under the Explosives Rules, 2008.

(4)

The District Authority shall complete the enquiry within a period of three months or as expeditiously as possible and such authority shall, after being satisfied, grant no objection certificate in Form C-2 of Part-4 of Schedule-II or grant the licence, as the case may be, along with site plan, duly signed and sealed by such authority.

(5)

If the District Authority or the Director General of Mines Safety, as the case may be, refuses to grant the no objection certificate on any of the grounds relating to the purpose of no objection certificate, then no licence shall be granted by the licence issuing authority except with the sanction of the Central Government.

(6)

The District Authority or the Director General of Mines Safety, as the case may be, shall grant no objection certificate or licence or convey his refusal for granting no objection certificate or licence, as the case may be, with reasons thereof in writing to the applicant as expeditiously as possible but not later than a period of six months from the date of receipt of application from the applicant.

35.

Grant of a Licence.

(1)

The Licence issuing Authority, on being satisfied with the documents received for grant of licence, in the Form specified in Schedule II and after making such inquiry, if any, as it may consider necessary, shall, subject to the other provisions of the Act and these rules, by order in writing either grant the licence or refuse to grant the same.

(2)

Licence for transport of Ammonium Nitrate or Ammonium Nitrate melt in Form P-4 shall be granted only to the valid license holders in Form P-1, P-2, P-3 or P-5.

(3)

The licensing authority may verify the facilities of the licensed premises and on satisfaction shall endorse the licence.

(4)

The licensing authority, if necessary, may impose additional conditions to the license.

(5)

The District Authority may refer to the Chief Controller for seeking any expert opinion, if required.

36.

Renewal of licence.

(1)

Every licence except the licences granted for import or export of Ammonium Nitrate shall be renewable for a maximum period of five financial years ending on the 31st March.

(2)

Every application under sub-rule (1) for renewal of the licence shall be accompanied by the following documents, namely:-

(a)

application in Form R-1;

(b)

original licence;

(c)

required renewal fee as specified in rule 29.

(3)

A licence may be renewed by the authority empowered to grant such licence:

Provided that a licence which has been granted by the Chief Controller may be renewed without any alteration by a Controller duly authorised by the Chief Controller in this behalf:

Provided further that a licence, which has been granted by the District Magistrate, may be renewed without any alteration by a Sub-Divisional Magistrate or an Executive Magistrate duly authorised by the District Magistrate in this behalf.

(4)

Every application for the renewal of a licence shall be made so as to reach the licensing authority or the authority empowered to renew the licence on or before three months (i.e. 31st December) before the date on which the licence expires together with the licence fees:

Provided that the application received after the 31st December till the date of expiry of the licence shall be treated as late application and the licences shall be renewed with the late fees equivalent to one year's licence fee.

(5)

If the application for renewal reaches the renewing or licensing authority on or before the date of expiry, the licence shall be deemed to be in force until such date as the licensing authority renews the licence or until an intimation that the renewal of the licence is refused has been communicated to the applicant and if no application is received till the date of validity of the licence, the licence shall stand expired.

(6)

The same fee shall be charged for the renewal of a licence for each year as for grant thereof.

(7)

Where a licence renewed for more than one financial year is surrendered before its expiry, the renewal fee paid for the unexpired portion of the licence shall be refunded to the licensee:

Provided that no refund of renewal fee shall be made for the financial year during which the licensing authority received the renewed licence for surrender.

(8)

When a licence is renewed by the Chief Controller or a Controller, intimation to that effect shall be sent to the District Magistrate concerned and when a licence is renewed by the District Magistrate, intimation to that effect shall be sent to the Controller having jurisdiction.

37.

Amendment of licence in respect of alteration or change in the premises or licensed capacity, but not involving change of name of licensee or partners or directors or members.

(1)

A licence granted under these rules may be amended by the authority empowered to grant the licence if the amendment is consistent with the provisions of these rules.

(2)

A licensee who desires to have his licence amended shall submit the following particulars to the licensing authority, namely:-

(a)

Application in appropriate Form as per Part-1 of Schedule II stating nature of the amendment and the reasons thereof;

(b)

the original licence together with enclosures to it;

(c)

drawings showing the details of the proposed amendment if such drawings are required by the licensing authority for the purpose of amendment;

(d)

required amendment fee as prescribed in Rule 29

(3)

The licensing authority after scrutiny of the documents submitted under sub-rule (2), and after making such further inquiries and taking such action as deemed necessary, may amend the licence.

38.

Procedure for change of partners or directors or members or occupier.

- Whenever any new partner or member or director is inducted in the partnership firm or society or association or company, as the case may be, without any change in the name of the licence holder firm or society or association or company, the licence holder shall submit application to the licence issuing authority with the following documents for accepting the newly inducted partners or members or directors,-

(a)

application in appropriate Form as per Part-1 of Schedule II stating the nature of the amendment and the reasons thereof;

(b)

the names and addresses of newly inducted directors or partners or office-bearers, as the case may be, and in case the occupier is changed, photographs of the new occupier;

(c)

documentary evidence in respect of induction of directors or partners or office-bearers as the case may be, including their specimen signatures;

(d)

six passport size photographs of the new occupier signed by him in front along with documentary evidence of nomination as occupier;

(e)

a certificate of verification of antecedents from the District Authority of the newly inducted directors or partners or office-bearers, as the case may be, where the District Authority is not the licence issuing authority;

(f)

the original licence together with enclosures to it; and

(g)

the required amendment fee as prescribed in rule 29.

39.

Refusal for approval, grant or amendment of licence.

- The licensing authority refusing to accord approval or grant licence including amendment shall record in writing the reasons for such refusal and communicate the same to the applicant and before refusal, the applicant shall be given an opportunity of being heard.

40.

Refusal to renew a licence.

(1)

The licensing authority refusing to renew a licence shall record the reasons for such refusal in writing.

(2)

The licensing authority shall refuse to renew a licence if such licence can be revoked in accordance with the Act or these rules.

(3)

A brief statement of reasons for refusal to renew a licence shall be given to the holder of the licence on demand unless in any case the licensing authority is of the opinion that it shall not be in public interest to furnish such statement.

(4)

Where the renewal of the licence is refused, the fee paid for the renewal shall be refunded to the licence holder after deducting the proportionate fee for the period beginning from the date from which the licence was to be renewed up to the date from which renewal thereof is refused.

(5)

Before refusing the renewal of a licence under the rule, the holder of the licence shall be given an opportunity of being heard.

41.

Cancellation of No Objection Certificate.

(1)

No Objection Certificate granted under rule 34, may be cancelled by the authority issuing the same or authority superior to it, if such authority is satisfied, that-

(a)

the licence holder has ceased to have any right for the lawful possession over the premises;

(b)

the licence holder is convicted and sentenced for any criminal offence or ordered to execute under Chapter VIII of the Code of Criminal Procedure, 1973 (2 of 1974), a bond for keeping peace for good behaviour;

(c)

the cancellation of no objection certificate is absolutely necessary for public peace and safety:

Provided that before cancellation of the no objection certificate, the licence holder shall be given an opportunity of being heard.

(2)

The authority issuing the no objection certificate or the State Government cancelling no objection certificate shall record, in writing, the reasons for such cancellation and shall immediately furnish to the licence holder and the licensing authority concerned, a copy of the order cancelling the no objection certificate and the reason for such cancellation.

(3)

In case an appeal is made against the cancellation of no objection certificate, such appeal shall be preferred within a period of sixty days, before the authority superior to the District Authority or the Director General of Mines Safety, as the case may be, and the appellate authority may consult the Chief Controller, if so desired.

42.

Suspension and revocation or cancellation of licence.

(1)

Every licence granted under these rules shall-

(a)

stand cancelled, if the licence holder is convicted and sentenced under any criminal offences or ordered to execute under Chapter VIII of the Code of Criminal Procedure, 1973 (2 of 1974), a bond for keeping peace for good behaviour;

(b)

stand cancelled, if the No Objection Certificate is cancelled by the District Authority or the State Government.

(c)

be liable to be suspended or cancelled by an order of the licensing authority for any contravention of the Act or these rules or of any condition contained in such licence, or by order of the Central Government, if it is satisfied that there are sufficient grounds for doing so:

Provided that before suspending or cancelling a licence under this rule, the holder of the licence shall be given an opportunity of being heard.

(2)

The suspension or cancellation shall take effect from the date specified therein.

(3)

An order of suspension or revocation of a licence shall be deemed to have been served if sent by post to the address of the licence holder entered in the licence.

(4)

The suspension of a licence shall not debar the holder of the licence from applying for the renewal.

(5)

Notwithstanding anything contained in sub-rule (1), an opportunity of being heard may not be given to the holder of the licence before his licence is suspended or cancelled in cases -

(i)

where the licence is suspended by a licensing authority as an interim measure for violation of any of the provisions of the Act or these rules or of any conditions contained in such licence and in his opinion such violation is likely to cause imminent danger to the public:

Provided that where a licence is so suspended, the licensing authority shall give the holder of the licence an opportunity of being heard before the order of suspension is confirmed; or

(ii)

where the licence is suspended or cancelled by the Central Government, in the public interest or in the interest of the security of the State, such opportunity should not be given.

(6)

A licensing authority or the Central Government suspending or cancelling a licence shall record its reason for so doing in writing.

43.

Procedure on expiry, suspension or revocation or cancellation of licence.

(1)

A licence holder on the expiry, suspension or revocation or cancellation of the licence shall forthwith give notice to the licensing authority, of the description and quantity of the Ammonium Nitrate in his possession and shall comply with the directions which the licence issuing authority may give in regard to their disposal.

(2)

In case the licence is revoked or cancelled by the licensing authority, fee for unexpired portion shall be reimbursed to the applicant by the licensing authority.

44.

Provision for appeal.

(1)

An appeal against an order of the licensing authority refusing to grant or renew a licence or suspending or revoking a licence shall lie, if the order is passed by the;

(a)

Chief Controller, to the Central Government

(b)

Controller, to the Chief Controller

(c)

District Authority, to the immediate superior to such Authority.

(2)

Every appeal referred in sub-rule (1) shall be preferred within a period of sixty days of the date of the communication of such order.

45.

Procedure to be followed by the appellate authority.

(1)

On receipt of the appeal and if such appeal can be admitted in accordance with the Act the appellate authority may call for records of the case from the authority who passed the order appealed against and may make such further enquiries as it may deem necessary and after giving the appellant an opportunity of being heard, pass final orders.

(2)

The action taken by the appellate authority shall conform to the provisions of section 6F of the Act.

46.

Procedure on death or disability of licence holder.

(1)

If a licence holder dies or becomes insolvent or becomes mentally incapable or otherwise disabled, the licence granted to him under these rules shall stand cancelled on the date of the licence holder's death or mental incapacity or insolvency or disability, as the case may be.

(2)

The legal heirs or representatives of the licence holder shall as soon as may be, inform the licensing authority;

(a)

about the date of death, insolvency, mental incapacity or other disability as the case may be, of the licence holder; and

(b)

shall await the directions of the licensing authority with regard to the disposal of the Ammonium Nitrate kept at the licensed premises.

47.

Loss of licence.

- Where a licence granted under these rules or an authenticated copy granted thereof, is lost or accidentally destroyed, a duplicate copy may be issued on payment of fees, as given under the provisions of rule 29.

Chapter VIII

Powers Vested With Authorities

48.

Power of officers to demand licence or pass.

- Every person holding a licence granted under these rules shall, when called upon to do so by any authority specified in rule 50, produce it, or an authenticated copy of it, at such time and place as may be directed by such officer.

(1)

Every person in charge of a consignment of Ammonium Nitrate or Ammonium Nitrate melt in transit having a valid pass issued under these rules shall produce it when called upon to do so by any authority specified in rule 50.

(2)

Copies of any licence may, for the purposes of these Rules, be authenticated free of charge by the authority, which granted the licence.

49.

Executive control over authorities.

- Every authority other than the Central Government acting under these rules shall be subject to the directions and control of the Central Government:

Provided that nothing in these rules shall be deemed to affect the powers of executive control of the Chief Controller over the Officers subordinate to him.

50.

Powers of search and seizure.

(1)

Any authority specified in column (1) of the Table below may within the jurisdiction specified in the corresponding entry in column (2) of that Table;

(a)

enter, inspect and examine any place, aircraft, train, carriage, vessel or any mode of transport in which an Ammonium Nitrate is being manufactured, converted, possessed, used, sold, transported, exported or imported under a licence granted under these rules, or in which he has reason to believe that an Ammonium Nitrate has been or is being manufactured, converted, possessed, used, sold, transported, exported or imported in contravention of the Act or these rules;

(b)

search for Ammonium Nitrate;

(c)

take samples of any Ammonium Nitrate, seize, detain and remove any Ammonium Nitrate found therein together with connected documents thereof in respect of which he has reason to believe that any of the provisions of the Act or these rules have been contravened.

Table

Serial Number

Authority

Jurisdiction

1

All District Magistrates.

Their respective jurisdiction

2

All Executive Magistrates subordinate to the District Magistrate.

Their respective jurisdiction

3

All Commissioners of Police or Police Officers of rank not below that of a Sub-Inspector of Police.

Their respective jurisdiction

4

The Director General of Mines Safety or officers subordinate to him.

Their respective jurisdiction

5

The Chief Controller or Controller of Explosives

All parts of India

51.

Procedure on reports of infringement.

(1)

Whenever any report is made to the District Magistrate by the Chief Controller or Controller of an infringement of the Act or of these rules, the District Magistrate shall take immediate action and shall inform the Chief Controller or the Controller, as the case may be, of the action taken by him on such report.

(2)

The Chief Controller or a Controller shall destroy any Ammonium Nitrate whenever found in respect of which the Chief Controller or Controller, as the case may be, has reasons to believe that any of the provisions of these rules have been contravened or which in his opinion are no longer fit for storage, transport or use and the matter appears to be urgent to such Controller and fraught with serious danger to the public, place or owner of Ammonium nitrate.

(3)

Nothing in this rule shall apply to improvised explosives device containing Ammonium Nitrate or mixture thereof.

Chapter IX

Accidents, Inquiries and Reports

52.

Notice of any loss or theft.

- The licence holder shall give a notice of any loss or theft involving the Ammonium Nitrate or Ammonium Nitrate melt in his possession, where the loss exceeds the permitted limit of loss that typically occurs during routine productions, storage, transportation, or use of Ammonium Nitrate to the licensing authority and concerned District Authority giving details of the circumstances leading to loss or theft and the notice of loss or theft shall also be reported to the nearest local police station.

53.

Notice of accident.

(1)

The notice of an accident required to be given under section 8 of the Act shall be given within a period of twenty four hours of the accident by telephone, telegram, E-mail, fax or in any other electronic mode or by special messenger followed by a written report signed by the occupier or authorized agent giving particulars of the circumstances leading to the accident, loss of human life, injury to persons, damage to property, emergency action taken etc, to the-

(a)

Chief Controller;

(b)

Controller in whose jurisdiction accident has taken place;

(c)

District Magistrate; and

(d)

Officer-in-charge of the nearest police station.

(2)

Pending the visit of the Chief Controller, or his authorized representative or instruction received from the Chief Controller or his representative that he does not wish any further investigation or inquiry to be made, all wreckage and debris shall be left untouched except in so far as its removal may be necessary for the rescue of persons injured and recovery of the bodies of any persons killed by the accident or in the case of aerodromes, ports or railways, or place of loading/unloading for the restoration of thorough communication.

(3)

The Chief Controller or his authorized representative, if so required by them, shall be provided with all assistance by the

officer in charge of the nearest police station.

54.

Procedure at courts of inquiry.

(1)

The Chief Controller shall arrange with the heads of the Armed Forces or Ordnance Factories or other establishments of such forces to be represented at the Courts of Inquiry where he so desires.

(2)

The Chief Controller shall be provided with copies of the proceedings of the Court where he is not represented.

(3)

The heads of Armed Forces or Ordnance Factories or other establishments of such forces, as the case may be, shall co-operate with the Chief Controller by informing him immediately of occurrences, liable to lead to the summoning of Courts of Inquiry on matters of interest to the Chief Controller as indicated by him.

(4)

The Chief Controller may attend in person or send a representative and in either case he shall have power to examine witnesses, where he so desires.

55.

Inquiry into accident.

(1)

Whenever a District Magistrate holds an inquiry under sub-section (1) of section 9 of the Act, that officer shall adjourn such an inquiry unless the Chief Controller or an officer nominated by him is present to watch the proceedings or such Magistrate has received information from the Chief Controller that he does not wish to send a representative.

(2)

The District Magistrate shall, at least twenty one days before holding the adjourned inquiry, send to the Chief Controller a notice in writing of the time and place of holding the adjourned inquiry.

(3)

Where an accident has been attended with loss of human life, the District Magistrate, before the adjournment may take evidence to identify the dead bodies and may order the disposal thereof.

(4)

The Chief Controller or his representative shall be at liberty at any such inquiry to examine any witness subject to the order of the District Magistrate on points of law.

(5)

Where the Chief Controller is not present or represented at any inquiry held by a District Magistrate, a copy of the report of the proceedings thereof shall be sent to him.

56.

Inquiry into more serious accidents.

(1)

Whenever an inquiry is held under section 9A of the Act, the persons holding such inquiry shall hold the same in open court in such manner and under such conditions as they may think most effectual for ascertaining the causes and circumstances of the accidents and enabling them to make the report under this rule;

Provided that where the Central Government so directs the inquiry may be held in camera.

(2)

Whenever an inquiry under sub-rule (1) is held by a person other than the Chief Controller, such person shall arrange for the Chief Controller to be represented at such inquiry including any adjournment thereof.

(3)

The person holding the inquiry shall, at least twenty one days before holding the inquiry or any adjourned inquiry, send to the Chief Controller a notice in writing of the time and place of holding such inquiry.

(4)

The Chief Controller may attend in person or send a representative and in either case, he shall have power to examine witnesses where he so desires.

Chapter X

Administrative Action

57.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against the Government or any officer or other employee of the Government for anything which is in good faith done or intended to be done in pursuance of these rules.

58.

Administrative action after inspection for violation.

- The inspecting authority on inspection of the premises, shall communicate to the licence holder and licensing authority in writing, his observations, discrepancies or the violations, if any, of the rules or contravention of conditions of the licence; and a copy of the inspection report shall be endorsed to the licensing authority for taking further necessary action.

I

Licences and Licensing Authority

(See rule 28)

Serial Number

Purpose for which granted

Form of Licence

Licensing Authority

1

Licence to manufacture and possess for sale Ammonium Nitrate or convert melt to solid and vice versa and possess for sale of Ammonium Nitrate

P-1

Chief Controller or Controller authorised by Chief Controller

2

Licence to stevedore, bag and store Ammonium Nitrate

P-2

Chief Controller

3

(a) Licence to Possess for sale or use of Ammonium Nitrate from a store house not exceeding 30MT; or

P-3

District Authority

(b) Licence to Possess for sale or use of Ammonium Nitrate from a store house exceeding 30MT; or

P-3

Chief Controller or Controller authorised by Chief Controller

(c) Licence to Possess for use of Ammonium Nitrate from a store house attached to explosives manufacturing/Nitrous Oxide manufacturing unit; or

P-3

Chief Controller or Controller authorised by Chief Controller

(d) Licence to possess for use Ammonium Nitrate for agricultural purpose from a storehouse.

P-3

District Authority or Officer authorised by District Authority

4

(a) Licence to transport Ammonium Nitrate for licences granted by District Authority for possession for sale or possession for use; or

(b) Licence to transport Ammonium Nitrate for Licences granted by the Chief Controller or Controller for possession for sale or

possession for use.

P-4

District Authority or Officer authorised by District

AuthorityChief Controller or Controller

5

(a) Licence to Import Ammonium Nitrate; or(b) Licence
to Export Ammonium Nitrate

P-5

Chief Controller

II

Part-1

Application Forms

(See rule 33 of Ammonium Nitrate Rules, 2012)

Form No.

Purpose

A-1

Application for Licence to manufacture and possess for sale
Ammonium Nitrate or convert melt to solid and vice versa and
possess for sale of Ammonium Nitrate

A-2

Application for Licence to stevedore, bag and store Ammonium
Nitrate

A-3

Application for(a) Licence to Possess for sale or use of
Ammonium Nitrate from a store house not exceeding 30MT; or(b)
Licence to Possess for sale or use of Ammonium Nitrate from a
store house exceeding 30MT; or(c) Licence to Possess for
use of Ammonium Nitrate from a store house attached to explosives
manufacturing/Nitrous Oxide manufacturing unit; or(d)
Licence to possess for use Ammonium Nitrate for agricultural
purpose from a storehouse.

A-4

Application for licence to transport Ammonium Nitrate

A-5

Application for licence to(a) Import Ammonium Nitrate;
or(b) Export Ammonium Nitrate

Part-2

Licence Forms

(See rule 35 of Ammonium Nitrate Rules, 2012)

Form No.

Purpose

P-1

Licence to manufacture and possess for sale Ammonium Nitrate
or convert melt to solid and vice versa and possess for sale of
Ammonium Nitrate

P-2

Licence to stevedore, bag and store Ammonium Nitrate

P-3

(a) Licence to Possess for sale or use of Ammonium Nitrate
from a store house not exceeding 30MT; or(b) Licence to
Possess for sale or use of Ammonium Nitrate from a store house

exceeding 30MT; or(c) Licence to Possess for use of Ammonium Nitrate from a store house attached to explosives manufacturing/Nitrous Oxide manufacturing unit; or(d) Licence to possess for use Ammonium Nitrate for agricultural purpose from a storehouse.

P-4

Licence to transport Ammonium Nitrate

P-5

(a) Licence to

Import Ammonium Nitrate; or(b) Licence to Export Ammonium Nitrate.

Part-3

Return Forms

(See rules 14, 18, 20, 21, 27 and 36 of Ammonium Nitrate Rules, 2012)

Form No.

Purpose

R-1

Application for renewal of licence

R-2

Form of Account to be maintained by Licence holder - Account of Ammonium Nitrate manufactured, converted.

R-3

Declaration to be submitted to the Chief Controller by an importer on despatch of Ammonium Nitrate from the place or port of loading

R-4

Importers despatch schedule.

R-5

Form of Account to be maintained by Stevedore - Account of Ammonium Nitrate stevedored, bagged and dispatched.

R-6

Form of records to be maintained by a Transport Licence Holder
Records of Ammonium Nitrate or Melt transported by vehicle.

R-7

Form of Account to be maintained by Licence holder - Account of sale of Ammonium Nitrate

R-8

Form of Account to be maintained by Licence holder - Account of use of Ammonium Nitrate/

R-9

Monthly Returns of Ammonium Nitrate

R-10

Form of Indent for Ammonium Nitrate

R-11(a)

Form of intimation to be given by the Consignor to the District Superintendent of Police before dispatch of consignment.

R-11(b)

Pass issued by the Consignor for transport of Consignment of Ammonium Nitrate

Part-4

Certificates

(See rules 18 and 34 of Ammonium Nitrate Rules, 2012)

Form No.

Purpose

C-1

Declaration to be made by the master of a ship carrying
Ammonium Nitrate before entering a port or by the ship's agent

C-2

Format of No Objection Certificate

Form A-1

(See Part-1 of Schedule II and rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

Application for Licence to manufacture and possess for sale Ammonium Nitrate or convert melt to solid and vice versa
and possess for sale of Ammonium Nitrate

I, on behalf of apply for approval or grant or amendment of licence for the following
purpose.

Purpose :

1. I require licence in the following name and postal address:

(a)

Name in which licence is required to be granted (see notes below)

(b)

Status

(c)

Age

(d)

Postal address:

..... City District.....State Pin
code Police Station..... Railway Station or Steamer Ghat Phone
Email Fax

2. The proposed premises are situated at the following address: Survey
number City District State Pin code Police
Station Railway Station or Steamer Ghat Phone Email Fax
.....

3. Qualifications and experience of applicant and the technical personnel employed by him
.....

4. Quantity of Ammonium Nitrate proposed to be manufactured, converted per day

a) Annual capacity of the manufacturing, conversion plant

b) Date of commencement of manufacturing (for existing manufacturers only)

c) Quantity of Ammonium Nitrate present at any one time in each storehouse each shed of the
conversion plant

d) Total Quantity of Ammonium Nitrate proposed to be stored at anyone time

e) Details of amendment proposed or additional information, if any

5. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of
Criminal Procedure, 1973(2 of 1974) during the last 10 years. Yes No

If yes, please give details

6. (a) particulars of other licences under Ammonium Nitrate Rules, 2012 if any held by the applicant during the last 10
years

(b)

Was any licence cancelled or not renewed?..... Yes No

(c)

If yes, give details

7. Particulars of amendment proposed/ Additional information if any

I hereby certify that the above particulars given by me are correct.

Date

Signature of applicant

(Authorised person in case of a Company)

Full Name

Address

Notes:

Please see the rule for the purpose and documents, to be enclosed.

(1)

In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorised person to be attached.

(2)

Passport size photographs of the occupier to be attached.

(3)

Any change in the above information should be immediately communicated to the Chief Controller of Explosives, District Authority and authority renewing the licence.

(4)

Age to be given in case the applicant is an individual.

(5)

(a)

Ammonium Nitrate storehouse shall maintain;

(i)

for storage not exceeding 30 MT, Safety Distance of 4.5 metres from store house to the compound wall and 45 metres from any protected works;

(ii)

for storage exceeding 30 MT, Safety Distance of 9 metres from store house to the compound wall and 90 metres from any protected works;

(b)

the storehouse may be adjacent to the bagging unit of the manufacturing, conversion or explosives/nitrous oxide manufacturing plants, but shall observe the provisions of clause 4(a) (i) and (ii) of Rule12.

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Form A-2

(See Part-1 of Schedule II and rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

Application for licence to stevedore, bag and store Ammonium Nitrate

I, on behalf of apply for approval or grant or amendment of licence for the following purpose.

Purpose:

1. I require licence in the following name and postal address:

(a)

Name in which licence is required to be granted (see notes below)

(b)

Status

(c)

Age

(d)

Postal address:

..... City
..... District State Pin code Police Station Railway
Station or Steamer Ghat Phone Email. Fax

2. The proposed bagging premises is situated at the following address:

..... Survey

number City District State Pin code Police Station Railway Station Port of import Phone Email Fax

3. Details of the registration of Stevedoring agent by Port Authority

4. Qualifications and experience of applicant and the technical personnel employed him

5. Bagging capacity of Ammonium

a) Annual bagging capacity

b) Quantity of Ammonium Nitrate present at anyone time in each bagging go down And attached storehouse (if any)

c) Total Quantity of Ammonium Nitrate proposed to be stored at anyone time both in bulk and bagged condition

d) Details of amendment proposed or additional information, if any

6. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973(2 of 1974) during the last 10 years. Yes No

If yes, please give details

7. (a) particulars of other licences under Ammonium Nitrate Rules, 2012, if any held by the applicant during the last 10 years

(b)

was any licence cancelled or not renewed? Yes No

(c)

If yes, give details

8. Particulars of amendment proposed/ Additional information if any

.....

I hereby certify that the above particulars given by me are correct.

Date

Signature of applicant

(Authorised person in case of a Company)

Full Name

Address

Notes:

Please see the rule for the purpose and documents to be enclosed

(1)

In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorised person to be attached.

(2)

Passport size photographs of the occupier to be attached.

(3)

Any change in the above information should be immediately communicated to the District Authority and authority renewing the licence.

(4)

Age to be given in case the applicant is an individual.

(5)

(a)

Ammonium Nitrate storehouse shall maintain;

(i)

for storage not exceeding 30 MT, Safety Distance of 4.5 metres from store house to the compound wall and 45 metres from any protected works;

(ii)

for storage exceeding 30 MT, Safety Distance of 9 metres from store house to the compound wall and 90 metres from any protected works;

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Form A-3

(See Part-1 of Schedule II and rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

Application for grant/ amendment of:

(a)

Licence to Possess for sale or use of Ammonium Nitrate from a store house not exceeding 30MT; or

(b)

Licence to Possess for sale or use of Ammonium Nitrate from a store house exceeding 30MT; or

(c)

Licence to Possess for use of Ammonium Nitrate from a store house attached to explosives manufacturing/Nitrous Oxide manufacturing unit; or

(d)

Licence to possess for use Ammonium Nitrate for agricultural purpose from a storehouse.

I, on behalf of apply for approval or grant or amendment of licence for the following purpose.

1. Purpose:

2. I require licence in the following name and postal address:

(a)

Name in which licence is required to be granted (see notes below)

(b)

Status

(c)

Age

(d)

Postal address:

..... City District State

..... Pin code Police Station Railway Station or Steamer Ghat

Phone Email Fax

3. The proposed premises are situated at the following address:

..... Survey number City

..... District State Pin code Police Station

Railway Station or Steamer Ghat Phone Email Fax

4. Qualifications and experience of applicant and the technical personnel employed by him

5. Ammonium Nitrate proposed to be possessed and sold:*

(i)

Quantity of Ammonium Nitrate proposed to be possessed at anyone time

(ii)

Quantity of Ammonium Nitrate proposed to be sold in one month

6. (a) Ammonium Nitrate proposed to be possessed and used* -

(i)

State the purpose of Ammonium Nitrate usage

(ii)

Quantity of Ammonium Nitrate proposed to be used per day

(iii)

Quantity of Ammonium Nitrate proposed to be used in one month

(iv)

Quantity of Ammonium Nitrate proposed to be possessed for use at anyone time

(b)

Details of site and distance of site where the AN will be used from the storage premises mentioned in item 3

7. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of

Criminal Procedure, 1973(2 of 1974) during the last 10 years. Yes No

If yes, please give details

8. (a) particulars of other licences under Ammonium Nitrate Rules, 2012, if any held by the applicant during the last 10 years.

.....

(b)

particulars of licence/s under Explosives Rules 2008, if any held by the applicant during the last 10 years.

.....

(c)

was any licence cancelled or not renewed? Yes No

(d)

If yes, give details

9. Particulars of amendment proposed/ Additional information if any

.....

I hereby certify that the above particulars given by me are correct.

Date.....

Signature of applicant

(Authorised person in case of a Company)

Full Name

Address

*strikeout inapplicable portion

Notes:

Please see the rule for the purpose and documents to be enclosed

(1)

In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorised person to be attached.

(2)

Passport size photographs of the occupier to be attached.

(3)

Any change in the above information should be immediately communicated to the Licence Issuing authority and authority renewing the licence.

(4)

Age to be given in case the applicant is an individual.

(5)

(a)

Ammonium Nitrate storehouse shall maintain;

(i)

for storage not exceeding 30 MT, Safety Distance of 4.5 metres from store house to the compound wall and 45 metres from any protected works;

(ii)

for storage exceeding 30 MT, Safety Distance of 9 metres from store house to the compound wall and 90 metres from any protected works;

(b)

the storehouse may be adjacent to the explosives/nitrous oxide manufacturing plants, but shall observe the provisions of clause 4(a) (i) and (ii) of Rule, 12

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Form A-4

(See Part-1 of Schedule II and rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

Application for grant/amendment of licence to transport Ammonium Nitrate

I, on behalf of apply for grant of a licence/amendment of licence No to transport Ammonium Nitrate.

The particulars are given below and other documents are enclosed as required.

Replies to be given in this column

1.

Name of the applicant (see note below)

.....

2.

Applicant's postal address Pin Code No. Telephone

No. Telex

.....

3.

Particulars of licence granted under Ammonium Nitrate Rules

2012 held by the applicant from where the Ammonium Nitrate will
be transported licence no Situation of premises

.....For

possession and sale/use.....

Licensed capacity

.....

Date upto which the licence is valid

.....

4.

Particulars of place/s to which the Ammonium Nitrate will be
transported

.....

5.

Mode of transport:

.....

6.

(a) Has the applicant been convicted under any offence or
ordered to execute bond under Chapter VIII of Code of Criminal
Procedure 1973(2 of 1974) during last ten years?

Yes No

(b) If yes please give details

.....

7.

(a) Particulars of other licences under Explosives Act 1884 if
any held by the applicant during last ten years

.....

(b) Was any licence cancelled/not renewed?

.....

(c) If yes give details

.....

8.

Particulars of amendment proposed/Additional information if
any

.....

I hereby certify that the above particulars given by me are correct.

Date

Signature of applicant

(Authorised person in case of a Company)

Full Name

Address

Notes:

Please see the rule for the purpose and documents to be enclosed

(1)

In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorised person to be attached.

(2)

Passport size photographs of the occupier to be attached.

(3)

Any change in the above information should be immediately communicated to the licensing authority and authority renewing the licence.

(4)

Age to be given in case the applicant is an individual.

(5)

Copy of license form P1, P2, P3 or P5

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Form A-5

(See Part-1 of Schedule II and rules 33 and 35 of Ammonium Nitrate Rules, 2012)

Application for grant of licence to

(a)

Import Ammonium Nitrate; or

(b)

Export Ammonium Nitrate

I, on behalf of apply for grant of licence for the following purpose.

1. Purpose: Import or Export.....

2. Name: I require licence in the following name and postal address:

(a)

Name in which licence is required to be granted (see notes below).....

(b)

Status

(c)

Age

(d)

Postal address:

..... City District State Pin code

..... Police Station Railway Station or Steamer Ghat Phone Email

..... Fax

3.

(a)

(for Import).

(i)

Quantity of Ammonium Nitrate proposed to be imported at a time

(ii)

Name and address of the manufacturer and or country of importer of Ammonium Nitrate to be imported

(iii)

Particulars of the storehouse where Ammonium Nitrate will be stored after import :

(iv)

Port or place of import

(v)

Whether import of Ammonium Nitrate is in bulk or bagged form.

(vi)

Particulars of Stevedoring agent giving his name addressed and licence No

3.

(b)

(for Export)

(i)

Quantity of Ammonium Nitrate to be exported

(ii)

Name and address of consignee or country of Export

(iii)

Place or port from which Ammonium Nitrate will be exported

4. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) during the last 10 years. Yes No

If yes, please give details

5. (a) Particulars of other licenses under Explosives Act, 1884, if any held by the applicant during the last 10 years.

(b)

was any licence cancelled or not renewed? Yes No

(c)

If yes, give details

6.

a) Has applicant imported or exported Ammonium Nitrate in the past

Yes No

b) If yes details thereof for last three years

7. Particulars of amendment proposed/ Additional information if any

I hereby certify that the above particulars given by me are correct.

Date

Signature of applicant

(Authorised person in case of a Company)

Full Name

Address

Notes:

Please see the rule for the purpose and documents to be enclosed

(1)

In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorised person to be attached.

(2)

Passport size photographs of the occupier to be attached.

(3)

Any change in the above information should be immediately communicated to the Licence Issuing authority and authority renewing the licence.

(4)

Age to be given in case the applicant is an individual.

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Photograph of the licence holder or occupier with signature

Licence Form P-1

(See Sr. No.1 of Schedule I and rule 35 of Ammonium Nitrate Rules, 2012)

Licence to manufacture and possess for sale Ammonium Nitrate or convert melt to solid and vice versa and possess for sale of Ammonium Nitrate

Licence No

Annual Fees Rs

1. Licence is hereby granted to:

Name: Postal Address:
 City District State Pin
 code Police Station Railway Station or Steamer Ghat Phone
 Email Fax

2. Status of licence holder:

3. Licence is valid for the following purpose:

4. Licence is valid for the following quantity of Ammonium Nitrate:

(a)

Quantity of Ammonium Nitrate at anyone time

(b)

Quantity of Ammonium Nitrate per year

5. The Licensed premises shall conform to the following drawing(s):

Drawing No dated

6. The Licensed premises are situated at following address:

.....
 Survey No City District State Pin code Police
 Station Railway Station or Steamer Ghat Phone Email Fax

7. The premises consist of following facilities:

(i)

Manufacture/ Conversion facilities

(ii)

No. of storehouses

(iii)

No. of melt storage tanks

*Strike out whichever is not applicable

8. The licence is granted subject to the provision of Explosives Act 1884 as amended from time to time and the Ammonium Nitrate Rules, 2012 framed there under and the conditions, additional conditions and annexure.

(1)

Drawings (showing site, constructional and other details) as stated in serial no. 5 above.

(2)

Conditions and Additional Conditions of this licence signed by the Chief Controller of Explosives.

9. This licence shall remain valid till 31st day of March

This licence is liable to be suspended or revoked for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence, if the authorized premises are not found conforming to the description shown in the plans and annexure attached hereto.

Dated the 20

Signature,

Designation and seal

[Chief Controller or Controller of Explosives]

Space for Endorsement of Renewals

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.....

Conditions

1. The manufacture or conversion of Ammonium Nitrate shall be done from the plant shown in approved plan attached with licence.

2. The possession or storage of Ammonium Nitrate shall be done in the licensed storehouse or melt storage tank shown in the approved plan attached with the licence.

3. The quantity of Ammonium Nitrate in the premises or any part thereof shall not exceed at anyone time the quantity for which licence has been issued.

4. Spilled or sweepings of Ammonium Nitrate the waste Ammonium Nitrate collected from sweeping or spilled shall be

destroyed by the licence holder and account thereof shall be maintained indicating the quantity of the Ammonium Nitrate destroyed.

5. The licence holder and every person employed in or about the manufacture, conversion premises shall take all due precautions for the prevention of accidents by fire or explosion in the manufacture, conversion premises and for preventing unauthorised person from having access to the manufacture, conversion premises or to the Ammonium Nitrate therein and shall abstain from any act whatsoever which tends to cause fire or explosion and is not reasonably necessary for the purposes of work in the manufacturing, conversion premises.

6. No additions and alterations shall be carried out in the licensed premises without a previous sanction in writing of the Licence Issuing authority.

7. The licence holder shall appoint a competent person to supervise the manufacturing, conversion process and the operations shall be conducted under the supervision of the competent person.

8. Free access to the licensed premises shall be given at all reasonable times to any inspecting officer and all facilities shall be offered to the officer for ascertaining that the provisions of the Act and Rules and the safety conditions are duly observed.

9. If the Licence Issuing authority or the inspecting officer informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licensed premises or carry out recommendations, which are in the opinion of such authority may pose unacceptable risk and therefore the same is necessary for the safety or security of the premises or persons, the holder of the licence shall execute the recommendations and report compliance within the period specified by such authority.

10. Accidents by fire or explosion and losses, shortage or theft of Ammonium Nitrate shall be immediately reported to the nearest police station, the District Authority and Chief Controller or Controller.

11. Ammonium Nitrate shall be stored in attached storehouse(s) duly bagged and marked as per Rule 8 and 9 of Ammonium Nitrate Rules, 2012.

12. The quantity of ammonium Nitrate manufactured or converted or possessed shall not exceed the limit prescribed in the licence.

13. Licence holder engaged in manufacture or conversion and possession for sale of Ammonium Nitrate shall maintain records in the prescribed forms specified in Schedule II Part 3 and shall produce such records on demand to authority specified in Rule 49.

15. The licence holder shall submit monthly returns of Ammonium Nitrate manufactured or converted, received, sold and destroyed in the Form prescribed in Form R-9 of Part 3 of Schedule II so as to reach Licensing Authority and District Authority within 10th day of every succeeding month.

Dated the 20....

Signature,

Designation and seal

[Chief Controller or Controller of Explosives]

Photograph of the licence holder or occupier with signature

Licence Form P-2

(See Sr. No.2 of Schedule I and rule 35 of Ammonium Nitrate Rules, 2012)

Licence to stevedore, bag and store Ammonium Nitrate

Licence No

Annual Fees Rs.....

1. Licence is hereby granted to:

Name:.....

Postal Address: City District State Pin code
..... Police Station Railway Station or Steamer Ghat Phone Email
..... Fax

2. Status of licence holder:

3. Licence is valid for the following purpose: Stevedoring, bagging involving unloading Ammonium Nitrate from ship, transport to his licensed storehouse for storing and bagging.

4. Licence is valid for the stevedoring, bagging of following quantity of Ammonium Nitrate:

(a)

Quantity of Ammonium Nitrate at anyone time

(b)

Quantity of Ammonium Nitrate per month

5. The authorised premises shall conform to the following drawing(s):

Drawing No dated

6. The licensed premises are situated at following address:

Survey No City District

State Pin code Police Station Railway Station Port of import

Phone Email Fax

7. The premises consist of following facilities:

(i)

Bagging facilities

(ii)

Storehouse

8. The licence is granted subject to the provision of Explosives Act 1884 as amended from time to time and the Ammonium Nitrate Rules, 2012 framed there under and the conditions, additional conditions and annexure.

(a)

Drawings (showing site, constructional and other details) as stated in serial no. 5 above.

(b)

Conditions and Additional Conditions of this licence signed by the District authority.

9. This licence shall remain valid till 31st day of March

This licence is liable to be suspended or revoked for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence, if the authorized premises are not found conforming to the description shown in the plans and annexure attached hereto.

The 20

Signature, Designation

and seal [District Authority]

Space for Endorsement of Renewals

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

.....

Conditions

(1)

The storage and bagging of Ammonium Nitrate shall be done in Licensed premises shown in approved plan attached with the licence.

(2)

The quantity of Ammonium Nitrate in the premises or any part thereof shall not exceed at anyone time the quantity for which licence has been issued.

(3)

Spilled or sweepings of Ammonium Nitrate the waste Ammonium Nitrate collected from sweeping or spilled shall be destroyed by the licence holder and account thereof shall be maintained indicating the quantity of the Ammonium Nitrate destroyed.

(4)

The licence holder and every person employed in or about the manufacture, conversion premises shall take all due precautions for the prevention of accidents by fire or explosion in the manufacturing, conversion premises and for preventing unauthorised person from having access to the manufacture, conversion premises or to the Ammonium Nitrate therein and shall abstain from any act whatsoever which tends to cause fire or explosion and is not reasonably necessary for the purposes of work in the manufacturing conversion premises.

(5)

No additions and alterations shall be carried out in the licensed premises without a previous sanction in writing of the Licensing Authority. Such additions and alterations so sanctioned shall be shown in the amended plan attached to the licence.

(6)

The licence holder shall appoint a competent person to supervise the manufacturing, conversion process and the operations shall be conducted under the supervision of the competent person.

(7)

Free access to the licensed premises shall be given at all reasonable times to any inspecting or sampling officer and all facilities shall be offered to the officer for ascertaining that the provisions of the Act and these rules and the safety conditions are duly observed.

(8)

If the Licence Issuing authority or the inspecting officer informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licensed premises or carry out recommendations, which are in the opinion of such authority may pose unacceptable risk and therefore the same is necessary for the safety or security of the premises or persons, the holder of the licence shall execute the recommendations and report compliance within the period specified by such authority.

(9)

Ammonium Nitrate shall not be sold by the licensee. The bagged Ammonium Nitrate shall be despatched to the importer under whose licence the Ammonium Nitrate is imported.

(10)

Accidents by fire or explosion and losses, shortage or theft of Ammonium Nitrate shall be immediately reported to the nearest police station and the District Authority.

(11)

Ammonium Nitrate brought to the licensed storehouse(s) shall be bagged in suitable bags as expeditiously as possible and stored, duly marked as per rules 8 and 9.

(12)

No vehicle should move over heap of Ammonium Nitrate.

(13)

Weigh bridge shall be provided near stevedore's store house.

(14)

Licence holder shall maintain records in the prescribed forms specified in Schedule I Part 3 and shall produce such records on demand to authority specified in Rule 49.

(15)

The licence holder shall submit monthly returns of Ammonium Nitrate in the Form R-9 of Part 3 of Schedule II so as to reach Licensing Authority and District Authority within 10th day of every succeeding month.

(16)

The licensee or his authorized agent shall take all due precautions to prevent spillage, contamination and loss on transit of Ammonium Nitrate while unloading from the ship, transiting to the licensed storehouse, bagging and dispatching.

Signature, Designation and seal of District Authority

Photograph of the licence holder or occupier with signature

Licence Form P-3

(See Sr. No.3 of Schedule I and rule 35 of Ammonium Nitrate Rules, 2011)

Licence No

Annual Fees Rs

(a)

Licence to Possess for sale or use of Ammonium Nitrate from a store house not exceeding 30MT; or

(b)

Licence to Possess for sale or use of Ammonium Nitrate from a store house exceeding 30MT; or

(c)

Licence to Possess for use of Ammonium Nitrate from a store house attached to explosives manufacturing/Nitrous Oxide manufacturing unit; or

(d)

Licence to possess for use Ammonium Nitrate for agricultural purpose from a storehouse.

1. Licence is hereby granted to:

Name:..... Postal Address:

..... City District State

..... Pin code

Police Station Railway Station or Steamer Ghat Phone Email

..... Fax

2. Status of licence holder: Individual or company

3. Licence is valid for the following purpose

4. (a) Licence is valid for quantity of Ammonium Nitrate at anyone time

(b)

Quantity of Ammonium Nitrate to be purchased in a financial Year

5. The licensed premises shall conform to the following drawing(s):

Drawing No dated

6. The licensed premises are situated at following address:

..... City

..... District State Pin code Police Station Railway Station or Steamer Ghat. Phone E-mail Fax

7. The licensed premises consist of following facilities:

.....

.....

.....

8. The licence is granted subject to the provision of Explosives Act 1884 as amended from time to time and Ammonium Nitrate Rules, 2012 framed there under and the conditions, additional conditions and the following annexure.

(1)

Drawings (showing site, constructional and other details) as stated in serial no. 5 above.

(2)

Conditions and additional conditions of this licence signed by the Licence Issuing authority.

9. This licence shall remain valid till 31 day of March

This licence is liable to be suspended or revoked for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence, if the authorized premises are not found conforming to the description shown in the plans and annexure attached hereto

The 20

Signature, Designation and seal [Licensing Authority]

Space For Endorsement of Renewals

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Conditions

(1)

The Ammonium Nitrate shall be possessed only in the licensed storehouse or melt storage tank shown in the approved plan attached with the licence.

(2)

The quantity of Ammonium Nitrate in the premises or any part thereof shall not exceed at anyone time the quantity for which licence has been issued.

(3)

Spilled or sweepings of Ammonium Nitrate the waste Ammonium Nitrate collected from sweeping or spilled shall be destroyed by the licence holder and account thereof shall be maintained indicating the quantity of the Ammonium Nitrate destroyed.

(4)

The licence holder and every person employed shall take all due precautions for prevention of accidents by fire or explosion in the licensed premises and for preventing unauthorized person from having access to licensed premises and shall abstain from any act from whatsoever which tends to cause or explosion and is not reasonably necessary for the purpose of works related thereto.

(5)

No additions and alterations shall be carried out in the licensed premises without a previous sanction in writing of the Licensing Authority. Such additions and alterations so sanctioned shall be shown in the amended plan attached to the licence.

(6)

The licence holder shall appoint a competent person to supervise the manufacturing, conversion process and the operations shall be conducted under the supervision of the competent person.

(7)

Free access to the Licensed premises shall be given at all reasonable times to any inspecting or sampling officer and all facilities shall be offered to the officer for ascertaining that the provisions of the Act and these rules and the safety conditions are duly observed.

(8)

If the Licence Issuing authority or the inspecting officer informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licensed premises or carry out recommendations, which are in the opinion of such authority may pose unacceptable risk and therefore the same is necessary for the safety or security of the premises or persons, the holder of the licence shall execute the recommendations and report compliance within the period specified by such authority.

(9)

Accidents by fire or explosion and losses, shortage or theft of Ammonium Nitrate shall be immediately reported to the nearest police station and the District Authority.

(10)

Licence holder shall maintain records in the prescribed forms specified in Schedule I Part 3 to ensure accountability, identification and traceability of Ammonium Nitrate and shall produce such records on demand to authority specified in rule 49.

(11)

The licence holder shall submit monthly returns of AN received, sold /used and destroyed in the form prescribed in Form R-9 of Part 3 of Schedule II so as to reach Licensing Authority and District Authority within 10th day of every succeeding month.

Signature, Designation and seal of Licensing Authority

Photograph of the licence holder or occupier with signature

Licence Form P4

(See Sr. No.4 of Schedule I and rule 35 of Ammonium Nitrate Rules, 2012)

Licence to transport Ammonium Nitrate

Licence No.

Fee Rs (Per year)

1.

) Licence is hereby granted to to transport Ammonium Nitrate

2.

) From the premises licensed in form bearing licence No Situated at to places specified below. Places of destination-

Sl.No.	Place	District	State
--------	-------	----------	-------

Subject to the provisions of the Explosives Act, 1884 and Ammonium Nitrate Rules 2012 framed there under and to the conditions of this licence.

3.

) Postal address of licensee

4.

) The licence shall remain in force till 31st day of March, 20

This licence is liable to be suspended or revoked for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence.

The 20

Signature, Designation and seal of

Licensing Authority

Space For Endorsing Renewals

Statutory Warning: Misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

Conditions

(1)

This licence becomes void on the expiration of the terms mentioned therein or if a consignment breaks before reaching the place of destination or if the Ammonium Nitrate is taken from or to any place other than the places mentioned in the licence.

(2)

The licensee shall transport only Ammonium Nitrate as he is authorised to possess under the Act and the Ammonium Nitrate Rules 2012 framed there under.

(3)

The quantity of Ammonium Nitrate despatched to any consignee shall not exceed the quantity which such consignee is entitled to possess under a licence granted under these rules.

(4)

Each consignment of Ammonium Nitrate shall be covered by a pass in Form R-11(B) and that (when the Ammonium Nitrate is transported by rail) such pass shall be attached to the way bill or the invoices as the case may be.

(5)

A copy of each pass issued for each consignment shall be sent to-

(i)

Licensing authority;

(ii)

Controller of Explosives in whose jurisdiction the premises from which the consignment is sent, is situated; and

(iii)

The Controller of Explosives in whose jurisdiction the premises to which the Ammonium Nitrate are sent is situated.

(6)

Any loss, shortage or theft of Ammonium Nitrate in transit shall be reported without delay to the licensing authority and to the police station and to the Controller of Explosives in whose jurisdiction the loss, shortage or theft is discovered.

(7)

The Ammonium Nitrate shall be packed and marked in accordance with rules 8 and 9 of the Ammonium Nitrate Rules 2012.

Additional Conditions.

(1)

This licence is not transferable.

(2)

This licence or its authenticated copy shall at all times be kept in the transporting vehicle and produced on demand by an inspecting officer.

(3)

Ammonium Nitrate shall not be transported with any other explosives, inflammable substances, oil, carbonaceous matter etc.

(4)

The driver or operator of vehicle carrying or containing an Ammonium Nitrate shall not stop unnecessarily or for a longer period than is reasonably required, and shall avoid stops or places where public safety is in danger:

Provided that where vehicle transporting or containing Ammonium Nitrate is parked over night due to breakdown of vehicle or melt tanker or any reasons beyond the control of the driver, the premises in which the vehicle is parked -

(a)

shall not be used for any purpose that might give rise to the presence therein of an open flame, matches or any substance or article likely to cause explosion or fire;

(b)

shall be away from any habitation of any go down containing articles of a flammable nature or other hazardous goods:

Provided further that the nearest police station shall be informed about the location and temporary parking of the vehicle.

(5)

Vehicle while transporting Ammonium Nitrate shall be adequately secured at the expense of the licence holder. If the consignment of Ammonium Nitrate is likely to pass through sensitive areas notified by the Ministry of Home Affairs, it should be escorted by armed police escort or guard, provided by the District Police Administration.

(6)

Ammonium Nitrate melt shall be transported in specially designed tankers with manhole and discharge faucets duly sealed by the melt supplying firm. The melt tanker shall carry a quality control certificate issued by the AN melt supplying company. The receiver shall verify that the seal on manhole and discharge faucet is intact and verify concentration factor of Ammonium Nitrate.

(7)

Transport of Ammonium Nitrate in sensitive area notified by Ministry of Home Affairs shall not be allowed during the period of Sunset to Sunrise.

(8)

No smoking and no fire or artificial light or any article capable of causing fire shall be allowed on the vehicle carrying Ammonium Nitrate or Ammonium Nitrate melt.

(9)

The vehicle shall not be used for carrying passenger.

(10)

The vehicle, while Ammonium Nitrate are being loaded or unloaded or transported shall always be under the charge of competent person who shall be experienced in handling of Ammonium Nitrate and fully conversant there under. Where the vehicle not driven by the licence holder, a document signed by the licence holder naming persons authorised to drive and accompany the vehicle shall be carried in the vehicle and produced on demand to an inspecting officer.

(11)

The Ammonium Nitrate shall be loaded into the vehicle only at the licensed premises of consignor and unloaded from vehicle at the licensed premises of the consignee.

(12)

The licence holder shall maintain account of Ammonium Nitrate transported in Form R-6 and present the same on demand by an inspecting officer.

(13)

Free access shall be given at all reasonable times to any inspecting or sampling officer and every facility shall be afforded to the officer for ascertaining that the provisions of the Act or these rules and these conditions are duly observed.

(14)

Accidents by fire or explosion and losses, shortage or theft of Ammonium Nitrate shall be immediately reported to the nearest police station and the District authority.

Signature, Designation and
seal of Licensing Authority

Photograph of the licence holder or occupier with signature

Licence Form P-5

(See Sr. No.5 of Schedule I and rule 35 of Ammonium Nitrate Rules, 2012)

(a)

Licence to Import Ammonium Nitrate; or

(b)

Licence to Export Ammonium Nitrate

Licence No

Fees Rs

1. Licence is hereby granted to:

Name: Postal Address: City
..... District State Pin code Police Station Railway Station or
Steamer Ghat Phone Email Fax

2. Status of Licence Holder:

3. Licence is valid for the following kinds and quantity of Ammonium Nitrate:

(a)

Ammonium Nitrate to be Imported

Weight in Metric Tonnes of Ammonium Nitrate imported

Whether in bulk or in bagged form

Consignor's name and address

Licence number of the store house or houses of the consignee

Port of import

Mode of import

Particulars of Stevedoring Agent licence No. under Ammonium Nitrate Regulation 2011

(b)

Ammonium Nitrate to be Exported

Weight in Metric Tonnes of Ammonium Nitrate to be exported

No. of the bags

Consignor's name and address or Country's details

Licence number of the store house of the consignee

Port of export

Mode of export

4. The licence is granted subject to the provision of Explosives Act 1884 as amended from time to time and the Ammonium Nitrate Rules, 2012 framed there under and the conditions annexed.

5. This licence shall remain valid till (maximum one year from the date of issue).

This licence is liable to be suspended or revoked for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence.

The 20

Signature,

Designation

and seal of Chief Controller of Explosives

Conditions

1.

) The Ammonium Nitrate imported shall be removed to the licensed stevedore's storehouse and bagged in water proof bags.

2.

) The marking on each Ammonium Nitrate bag shall be in accordance with rule 8 and 9 of Ammonium Nitrate Rules 2012.

3.

) The import licence holder shall take delivery of the bagged AN from the stevedore's licensed storehouse and shall deliver at the licensed storehouse of the seller or user.

4.

) Only Ammonium Nitrate licenced under this licence shall be imported.

5.

) The quantity of Ammonium Nitrate imported or exported shall not exceed that authorised by this licence.

6.

) No ship or boat containing Ammonium Nitrate imported or exported on the strength of this licence shall bring to and no such Ammonium Nitrate shall be unloaded or trans-shipped from any ship or boat except at the port authorised by this licence.

7.

) The licence holder shall comply with all the rules and regulations in force at the port of import mentioned in this license.

8.

) The owner and master of the ship or boat in which Ammonium Nitrate are imported/ exported on the strength of this licence, shall, if and when required by an inspecting authority or the custom's authority having jurisdiction over the place

of importation, allow such inspection or officer to take for examination samples of any Ammonium Nitrate so imported.

9.

) Free access shall be given at all reasonable times to any inspection or sampling officer and every facility shall be afforded to the officer for ascertaining that the provisions of the Act or these rules and these conditions are duly observed.

10.

) Accidents by fire or explosion and losses, shortage or theft of Ammonium Nitrate shall be immediately reported to the nearest police station and the District authority and Chief Controller of Explosives or Licence Issuing Authority.

11.

) The quantity of ammonium Nitrate exported or imported or possessed shall not exceed the limit specified in the licence.

12.

) License holder shall maintain records and submit returns in the prescribed forms specified in Part 3 of Schedule II and shall produce such records demand to authority specified in rule 49

Signature, Designation and seal of

Chief Controller of Explosives

II

(Part -3)

Returns

Form R-1

(See rule 36 of Ammonium Nitrate Rules, 2012)

Application for Renewal of licence

(See note below before filling up the form)

From: -----

To

Dear Sir,

1. I, on behalf of apply for renewal of licence number in form for the period from to and furnish the following information:

During the last five years-

(i)

I was or we were-

(a)

not convicted or convicted (Strike off which ever not applicable) and sentenced for for following offences

(b)

not ordered or ordered to execute under Chapter VIII of Code of Criminal Procedure, 1973(2 of 1974) a bond for keeping peace or for good behaviour.

(c)

Not issued any direction from the Court in connection with the above said licence or certificate. (Give details if answer in affirmative) .

(ii)

Licence or certificate No in Form granted under the Act and these rules to me or us were cancelled or not renewed by the Licence Issuing authority.

2. I or We also enclose the following documents:

(i)

Licence or certificate No in Form together with approved plans and schedules.

(ii)

Renewal fee of Rs by bank draft of (name of issuing bank) bearing number date payable in favour of

3. I or We confirm that I or we shall inform you about the court's order or direction, interim or otherwise, if any issued in connection to the licence for which renewal is being applied, failing which I or we shall commit a punishable offence.

4. I or We hereby certify that

(i)

the above particulars given by me or us are correct.

(ii)

I am or we are aware that if Ammonium Nitrate is illegally transferred by me or us to any unauthorised person(s), I or we shall commit a punishable offence.

(iii)

I am or we are aware that if I or we conceal any material information relevant to this application, I or we shall commit a punishable offence and in addition, any administrative action can be taken against me or us.

Signature of Licence holder

(Authorised person in case of company)

Place

Date of application

Notes.-

(1)

The complete renewal or revalidation application should reach the renewal authority before the expiry date of licence or certificate, to avoid payment of late fees.

(2)

Strike out the inapplicable portion.

Form R-2

(See rule 14 of Ammonium Nitrate Rules, 2012)

Form of account to be maintained by a licence holder Accounts of Ammonium Nitrate manufactured or converted

Note. - This record should be kept up to-date.

Licence number In Form of Ammonium Nitrate Rules, 2012

Date

Batch numbers

No. of bags.

Melt produced in case of manufacturer, Melt used in case of converter

Total quantity of Ammonium Nitrate manufactured, converted

Remarks

Signature of person In- charge or licence holder

Name and address of melt supplier

Whether full yield achieved

1

2

3

4

5

6

7

8

9

Signature of Licence

Holder or person In-charge

Place

Date

Form R-3

(See rule 18 of the Ammonium Nitrate Rules, 2012)

Declaration to be submitted to the Chief Controller by an importer on despatch of Ammonium Nitrate from the place or port of loading.

Import licence No. and Date

Validity

Quantity permitted for import

Name and address of the manufacturer of Ammonium Nitrate

Quantities of Ammonium Nitrate on the ship.

Name and address of consignor

Place or port of despatch

Name of ship and date of sailing

Place or port of import

Likely date of arrival

Date of manufacture

Batch number

Quantity

Number of Bags

Date:

Place:

Signature of Importer

(Authorised person in case of a Company)

.....

Name in full

Address

Form R-4

(See rule 18 of the Ammonium Nitrate Rules, 2012)

Importer's despatch Schedule

Declaration to be forwarded in triplicate to the Chief Controller as soon as any consignment of Ammonium Nitrate is cleared from the place of or port of import

Name and address of importer

Import licence number granted by Chief Controller under

Ammonium Nitrate Rules and date of expiry of licence

Name and address of the manufacturer of Ammonium Nitrate

Particulars of despatch from place or port of import.

Name and address of licensee to whom Ammonium Nitrate were despatched

Licence number and Form

Quantity of Ammonium Nitrate despatched

Name and address of consignor

Quantity of Ammonium Nitrate imported

Place or port from which Ammonium Nitrate forwarded

Name of ship

Date of arrival and place or port of import

Quantity

Number of bags

Batch number and date

Date of despatch

Mode of despatch

Place

Date:

Signature of importer

(Authorised agent in case of company)

Name in full

Address

Form R-5

(See rule 14 of Ammonium Nitrate Rules, 2012)

Form of account to be maintained by a Stevedore Account of Ammonium Nitrate stevedored, bagged, stored and dispatched

Note. - This record should be kept up to-date.

Licence number in Form of Ammonium Nitrate Rules, 2012

Date

Name of the Ship from where bulk Ammonium Nitrate unloaded on behalf of importer

Name and address of the importer giving his import licence No.

Quantity of Ammonium Nitrate unloaded from the ship either in bulk or large size bags or container

No. of the bags in which Ammonium Nitrate has been repacked

Total quantity of Ammonium Nitrate repacked in bags

No. of bags or quantity of Ammonium Nitrate dispatched to the importer

Date of dispatch of packed Ammonium Nitrate to importer

Name and address of the Transporter and his Licence No.

Registration No. of the vehicle through which Ammonium Nitrate dispatched

Quantity of Ammonium Nitrate Spilled, collected and set for reprocessing to converter

Pass No.

Signature of Licence holder/ person incharge

1

2

3

4

5

6

7

8

9

10

11

12

13

Signature of Licence Holder or person Incharge

Place

Date

Form R-6

(See rule 14 of Ammonium Nitrate Rules, 2012)

Form of records to be maintained by a Transport Licence Holder Records of Ammonium Nitrate or Melt transported by vehicle

Note - This record should be kept up to date.

Licence number in Form of Ammonium Nitrate Rules, 2012

Date

Name, address and Licence number of the consignor

Place of loading

Quantity transported
vehicle Registration No.
Name and Address and Licence No. of the Driver
Pass No.
Name, address and licence number of the consignee
Place of unloading
Date of unloading of Ammonium Nitrate or Melt
Remarks
Signature of Licence holder/ person incharge
Ammonium Nitrate in bags
Ammonium Nitrate Melt

1
2
3
4
5
6
7
8
9
10
11
12

Signature of Licence Holder or person Incharge

Place

Date

Form R-7

(See rule 14 of Ammonium Nitrate Rules, 2012)

Form of account to be maintained by a licence holder Accounts of sale of Ammonium Nitrate

Note - This record should be kept up to date. Entries should be made daily and as and when Ammonium Nitrate is sold.

Licence number in Form of Ammonium Nitrate Rules, 2012

Date

Opening Balance (in kgs)

Quantity of Ammonium Nitrate received (in kgs)

Batch Number

Name, address and Licence Number from whom Ammonium Nitrate is received

Mode of Transport, vehicle No. and Transporters Licence No.

Pass Number

Quantity of Ammonium Nitrate sold (in kgs)

Batch Number

Name, address and Licence Number to whom Ammonium Nitrate is sold

Mode of Transport, Vehicle No. and Transporters Licence No.

Pass Number

Closing Balance (in kgs)

Remarks

1
2
3
4

5
6
7
8
9
10
11
12
13
14

Signature of Licence Holder or person Incharge

Place

Date

Form R-8

(See rule 14 of Ammonium Nitrate Rules, 2012)

Form of account to be maintained by a licence holder Accounts of use of Ammonium Nitrate

Note - This record should be kept up to date. The entries should be made daily and as soon as Ammonium Nitrate are issued for use or unused Ammonium Nitrate are returned.

Licence number in Form of Ammonium Nitrate Rules, 2012

Date

Opening Balance (in Kgs)

Quantity of Ammonium Nitrate received (in Kgs)

Batch No. and Date

Name, Address and Licence No. from whom, Ammonium Nitrate is received

Pass No.

Quantity used (in Kgs)

Place of use

1
2
3
4
5
6
7
8

Signature of Licence Holder or person Incharge

Place

Date

Form R-9

(See rule 14 of Ammonium Nitrate Rules, 2012)

Monthly Returns of Ammonium Nitrate

Statement of Ammonium Nitrate Received, used, sold, destroyed and stolen during the month of in respect of store house of situated at District State Licence number in Form of Ammonium Nitrate Rules, 2012

1. Opening balance on the 1st day of the month:

2. Account of Ammonium Nitrate:

Particulars of Ammonium Nitrate received

Date

Quantity (in kgs)

Name, address and licence number of suppliers from whom

Ammonium Nitrate was received

Pass No.

1

2

3

4

1.

2.

3. Total quantity of Ammonium Nitrate used or sold during the month

Date

Quantity Sold (in kgs)

Name, address and license number to whom Ammonium Nitrate was sold

Pass No.

Quantity used (in Kgs)

1

2

3

4

5

1.

2.

4. Particulars of Ammonium Nitrate destroyed during the month

Date

Quantity (in kgs)

Reasons for destruction

1

2

3

1.

2.

5. Particulars of Ammonium Nitrate stolen or short received.

Date

Quantity (in kgs)

Quantity (in kgs)

Whether theft or loss reported to police and District

Authority if so, give reference

Remarks

1

2

3

4

5

1.

2.

3.

4.

Signature of Licence Holder or Person in Charge

Place

Date

Form R-10

(See rule 26(2) (a) of Ammonium Nitrate Rules, 2012)

Form of indent for Ammonium Nitrate

To

.....

.....

.....

Dear Sir,

Kindly supply the following quantities of Ammonium Nitrate to me or us:-

Quantity (in kgs) :

I or We hold a licence number in Form of Ammonium Nitrate Rules, 2012 for possession for sale or use of following quantities of Ammonium Nitrate

Quantity (in kgs) :

The above mentioned licence is valid till

I or We solemnly declare that

(a)

the receipt of Ammonium Nitrate indented will not result in the licensed quantity being exceeded; and

(b)

no identical indent has been placed with any other supplier

*The Ammonium Nitrate may please be handed over to my or our authorized representative whose signatures are attested below:

Attested

Signature of Licence holder.

Signature of Licence holder

(Consignee)

Place:

Date :

(*Strike out whichever is not applicable.)

Form R-11(a)

(See rule 20(3) of Ammonium Nitrate Rules, 2012)

Form of intimation to be given by the consignor to the District Superintendent of Police before dispatch of consignment of Ammonium Nitrate.

1. Quantity of Ammonium Nitrate proposed to be despatched

2. Number of packages or bags

3. The Ammonium Nitrate proposed to be transported by vehicle Registration No.

4. Name and address of consignee

5. Number and validity of Consignee's licence to store Ammonium Nitrate

6. Consignee's indent number and date

7. Name and address of the authorised person who will receive the consignment

8. Date of despatch of consignment

Signature of the consignor

Licence number

Licence Form ...

Place:

Date:

Form R-11(b)

(See rule 21 (4) of Ammonium Nitrate Rules, 2012)

Pass issued by the consignor for transport of consignment of Ammonium Nitrate

1. No

2. This pass covers bags containing following quantity of Ammonium Nitrate, or Ammonium Nitrate Melt

(a)

No. of bags

(b)

Quantity

(c)

Batch No. and date

(d)

Name of manufacturer, converter

(e)

Stevedore's license No. under Ammonium Nitrate rules 2012

While in transit from to

3. The Ammonium Nitrate is being transported by vehicle bearing Registration No

4. Name and address of consignee

5. Number and Form of Consignee's licence

6. Consignee's order number and date and quantity of Ammonium Nitrate ordered

7. Consignee's letter number and date intimating readiness to receive Ammonium Nitrate

8. Date of despatch of consignment

9. Approximate date on which consignment should reach the destination.

Place:

Date:

Name and Signature of the consignor

Licence Number

Licence Form ...

Certificates

Form C-1

(See rule 18(5) of the Ammonium Nitrate Rules, 2012)

Declaration to be made by the master of a ship carrying Ammonium Nitrate before entering a port or by the ship's agent.

1. Name of ship

2. Date of Arrival at Port

Description of Ammonium Nitrate

Date of manufacture, batch number and other distinguishing
marks on Bags

Total quantity carried Kilogramme or Bags

Quantity to be landed at port Kilogramme or Bags

Remarks

Place:

Date:

Signature of Master or Agent of Ship

C-2

Format of No Objection Certificate

(See rule 33 of the Ammonium Nitrate Rules, 2012)

No Objection Certificate under the Ammonium Nitrate Rules, 2012

No.....

Date

With reference to the application No. Dated submitted by and in pursuance of rule 33 of the Ammonium Nitrate Rules 2012 there is no objection for granting licence under the Ammonium Nitrate Rules to Shri or Mrs. _____ of address for the following purpose, kinds and quantities of Ammonium Nitrate in the premises at Survey No. or Gat No. or Khasra No....., Village Taluka District State as shown in the site plan duly endorsed and enclosed herewith.

1. Purpose :

2. Quantities of Ammonium Nitrate:

(a)

at anyone time:

(b)

in one month:

Signature of the

No Objection certificate issuing

authority with his office seal

(District Magistrate or Director

General of Mines)

Related AI tags, queries and research notes

Translation